

# THE IRISH ECCLESIASTICAL RECORD:

A Monthly Journal.

CONDUCTED BY A SOCIETY OF CLERGYMEN,  
UNDER EPISCOPAL SANCTION.

VOL. I

"Ut Christiani ita et Romani sitis".

"As you are children of Christ, so be you children of Rome".

*Ex Dictis S. Patricii, Book of Armagh, fol. 9.*

DUBLIN:  
JOHN F. FOWLER, 3 CROW STREET,  
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THE IRISH

**ECCLESIASTICAL RECORD.**

SEPTEMBER, 1865.

**DR. COLENZO AND THE OLD  
TESTAMENT.**

NO. IV.

Who is there amongst our readers that has not at some time in his life stood upon the sea-shore to watch the rising tide? Two mighty powers meet, as it were in conflict, and each in its turn seems for a time to prevail. Wave rolls after wave, but each again recedes as if baffled in the struggle and exhausted by the effort. At one moment the waters gain upon the land; then in the next the land wins back all that it had lost; and sometimes even more besides. It is only when some prominent landmark is reached, which a little while ago stood high and dry upon the beach, that we can no longer entertain a doubt of the sure and steady progress of the advancing flood.

Such, as it seems to us, is the conflict which it is the lot of our age to witness between the flood-tide of infidelity and the Established Church in these countries. The one is aggressive, the other is struggling hard to hold its own. On both sides the contest is carried on with energy and power. To a casual observer it might perhaps seem that the fortunes of each are almost equal, and the victory uncertain. But to one who extends the range of his

vision and takes in the distant landmarks, it is plainly evident that one by one they are fast disappearing, and that the waves of infidelity are sweeping, slowly indeed, but irresistibly, over the face of the Established Church.

In the person of Dr. Colenso they have reached at length the episcopal bench. His brethren, it is true, have taken the alarm, and have made a show of resistance, but they only demonstrate their own weakness. Like Canute of old, they command the waters to advance no further, but their command is vain and fruitless. The great flood is still coming in, and they who but yesterday were considered, from their high position, far removed from danger, are to-day surrounded by the waves. In this perilous crisis the Catholic Church alone affords a home of undisturbed tranquillity to its children, a safe refuge to the stranger. It stands indeed in the midst of the danger, but its walls are too strong to be shaken, its foundation too solid to be undermined. It has been built by its Divine Founder on a rock, and the rain may descend, and the floods come, and the winds blow and beat upon that Church, but it falleth not. We have the promise of God, that her enemies shall not prevail against her; and therefore we may look out from our impregnable fortress upon the surging billows with the same calm sense of security as Noah had when he looked out from the window of the ark on the waters of the deluge. But though God had resolved that Noah should be saved from destruction whilst all around were perishing, yet Noah was not saved without the toil and labour of his own hands. And so, too, though by a decree of God, error cannot prevail against His Church, yet has he ordained that the true faith should be ever defended by human skill and industry. We hope, therefore, our readers will pardon us if we return once again to the charges which Dr. Colenso has brought against the truth of the Bible.

The increase of the children of Israel in Egypt, as represented in the Mosaic narrative, is Dr. Colenso's favourite objection. It is dressed out with the most elaborate ingenuity and care. It is set forth with even more than his usual confidence. It is held up as, in itself, sufficient to destroy the historical character of the whole narrative. By this objection, therefore, we may fairly suppose that he is willing to stand or fall. We have already pointed out two fundamental errors in the data from which it is deduced; many others yet remain, which we now proceed to expose.

III. There are two suppositions which would contribute very much to account for the rapid increase of the Israelites in Egypt; first, intermarriage with the Egyptians; secondly, the practice of polygamy. For the purpose of our defence it is quite sufficient that these two customs were *possible*. Upon Dr. Colenso it devolves to prove that they *did not prevail* in point of fact. We may observe, however, that the Pentateuch indicates clearly enough the existence of such practices. Judah married a woman of Canaan (*Gen.*, xxxiii. 2); so did Simeon (xlvi. 10); Joseph married an Egyptian (*Gen.*, xli. 25). Why then may we not suppose that their children intermarried with foreign nations? Was it impossible for them to imitate the example of their fathers? We must bear in mind, too, that for 100 years at least, the Hebrew people were high in favour at the court of Pharaoh. During the years of famine they were supported at the royal expense (*Gen.*, xlv. 11; xlvi. 12) while the Egyptians had to part with their money, their cattle, and even their land, to pay for food (*Gen.*, xlvii. 13-26): they had “the best of the land” for their dwelling (*Gen.*, xlvii. 6, 11): above all, they had for their patron and friend, their kinsman, Joseph who was “lord of all the house of Pharaoh, and ruler throughout all the land of Egypt” (*Gen.*, xlv. 8). An alliance with a race so wealthy and so favoured must have been eagerly courted by the Egyptians: and, on the other hand, the Israelites would not have been disposed to decline a connection which would have strengthened their position in the country and increased their influence.

It does not appear that intermarriage with the Egyptians was forbidden or even discouraged. On the contrary, an intimate social intercourse seems to have existed between the two nations. Even at the very time of the Exodus, we find that it was not unusual for the Hebrews to receive the Egyptians as guests or tenants into their houses.<sup>[1]</sup> It is not an improbable supposition that such close domestic relations might in many instances lead to marriage. But we have positive evidence that marriages of this kind actually did take place, and are in no way reprehended. Thus we find mention made incidentally of “the son of an Israelitish woman”, whose *father was an Egyptian* (*Lev.*, xxiv. 10). He was condemned to death for blasphemy when the Israelites were encamped under Mount Sinai: he must, therefore, have been born during the sojourn in Egypt. Again we are told of an Israelite who gave his daughter in marriage to an Egyptian servant (*I. Paralip.*, ii. 34, 35). This occurred certainly after the Exodus. But if the two

nations *sometimes* intermarried when they lived in *different* countries, may we not suppose that they *frequently* intermarried whilst they were living in the *same* country? Hence we conclude (1<sup>o</sup>) that the mutual relations which subsisted between the Egyptians and the Hebrews, would naturally lead to frequent intermarriage; (2<sup>o</sup>) that there is not a particle of evidence to make such a supposition improbable; (3<sup>o</sup>) that there is positive testimony in its favour.

As regards the plurality of wives or concubines,<sup>[2]</sup> the Israelites had before them the example of Abraham, who had at least three (*Gen.*, xvi. 1, 3; xxv. 1, 6), and of Jacob, who had four (*Gen.*, xxix. 20, 30; xxx. 4, 9). The practice of polygamy, therefore, had the highest and the holiest sanction in the eyes of the Hebrew people. It cannot be objected that, during the sojourn in Egypt, there is no explicit mention of polygamy in the Mosaic narrative. Moses did not undertake to write a history of the period. A single chapter in the beginning of Exodus, contains all that he records of what took place from the death of Jacob to the birth of Moses. Neither could we expect much information on this point from the genealogies which are given elsewhere in the Bible. Every one knows that it was not the ordinary custom of the Jews to mention the *mothers* of those whose pedigree was traced, but only the *fathers*.

Yet we are not left altogether without distinct testimony to the practice of polygamy among the Hebrew people in Egypt. In one family alone of the tribe of Judah we find the following examples: Hezron, the son of Pharez, had two wives, Abiah, and the daughter of Machir (I. *Paralip.*, ii. 21, 24). Caleb, the son of Hezron, had three, Azuba, Jerioth, and Ephrath (I. *Paralip.*, ii. 18, 19).<sup>[3]</sup> Jerameel, another son of Hezron, had two, one whose name is not given, and another called Atarah (I. *Paralip.*, ii. 25, 26). Ashur, likewise a son of Hezron, had also two, Helah and Naarah (I. *Paralip.*, iv. 5). Lastly, we find that Moses himself clearly recognizes this custom as prevalent. He makes laws regarding it, to prevent abuses, but he does not forbid it, nor does he even censure it. "If a man *have two wives*, one beloved and another hated, and they have borne him children, both the beloved and the hated; and if the first-born son be hers that was hated,... he shall acknowledge the son of the hated for the first-born, by giving him a double portion of all that he hath" (*Deut.*, xxiv. 15, 17). With these facts before us, we may judge what weight is to be attached to the authority of

Dr. Colenso when he states: "There is no indication that polygamy did prevail among the Hebrews of those days" (p. 120).

IV. Another very probable source of the rapid increase in population was the accession of fresh servants from without. The early history of Jacob affords a remarkable illustration of such an increase. He went into a foreign country *without* an invitation (*Gen.*, xviii. 1-5): he *served* in it for twenty years (*Gen.*, xxxi. 41): and yet at the end of that time he tells us, "With my staff passed over this Jordan, and now I am become as *two camps*" (*Gen.*, xxxii. 10). The Israelites during the first half of the sojourn in Egypt, were much more favourably circumstanced. We have seen that, immediately upon their descent into Egypt, they received an enormous increase both in wealth and importance. This change in their fortunes would naturally prompt them to add largely to the number of their servants. On the other hand, the inhabitants of Egypt and Canaan were sore pressed with famine. They were obliged to give up first their money, then their cattle, then their land, in exchange for bread (*Gen.*, xlvii. 13-20). Many must thus have been reduced to extreme necessity, and nothing would seem to have remained for them but to accept of service in the households of their rich and prosperous neighbours. These dependants, according to the command of God, should have been circumcised, and thus have been made sharers in the covenant of which that rite was a token. Their posterity would, therefore, be reckoned among the 600,000 who followed Moses into the desert.

To the increase by servants we may add a further increase by proselytes. It would seem that every facility was offered to those who wished to become incorporated with the Hebrew people. Even in the celebration of the Passover, all were freely to be admitted if they would submit to the rite of circumcision. "And if a stranger sojourn with thee, and will keep the Passover to the Lord, let every male of his be circumcised, and then let him come near and keep it; and he shall be as one that is born in the land" (*Ex.*, xii. 48). It is manifest that Moses thought it likely, even after a century of bondage and persecution, that many would still be found to join the fortunes of this oppressed people. Is it unreasonable, then, to suppose that such converts were more numerous in the days of their prosperity?

V. The average number of children in each family, according to the calculation of Dr. Colenso, was  $4\frac{1}{2}$ , or, at the outside, 6—3 sons and 3



daughters. The manner in which he arrives at this conclusion is singularly characteristic. He prepares the way by assuring us that “we have no reason whatever, from the data furnished by the sacred books themselves, to assume that they had families materially larger than those of the present day” (p. 102). If, however, we turn from the pages of Dr. Colenso to the pages of the sacred books themselves, we are told a very different story. “And God spake unto Israel in the visions of the night,... and he said: I am God, the God of thy father; fear not to go down into Egypt; for I will make of thee a great nation” (*Gen.*, xlvii. 2, 3). Such was the promise of God; here is the fulfilment: “And Israel dwelt in the land of Egypt, in the country of Goshen; and they held possession of it, and they *grew and multiplied exceedingly*” (*Gen.*, xlvii. 27). “And the children of Israel *were fruitful, and increased abundantly, and multiplied, and waxed exceeding mighty; and the land was filled with them....* The more they afflicted them, the more they multiplied and grew” (*Ex.*, i. 7-12). These words clearly imply that the people of Israel increased *beyond the usual rate at that time and in that country*. We are told, however, by several ancient writers that the people of Egypt were wont to increase with extraordinary rapidity.<sup>[4]</sup> And yet, in the face of all this, Dr. Colenso asserts that “we have *no reason whatever*, from the data furnished by the Sacred Books themselves, to assume that they had families materially larger than those of the present day”.

He next proceeds to establish his average. The twelve sons of Jacob had between them 54 children, which gives on an average  $4\frac{1}{2}$  to each. It is worthy of note that in making this estimate, he studiously excludes the family of Jacob himself, who had *twelve sons*. If this family had been added to the others, the average would have been considerably increased. But there is yet a more radical defect in his argument. The 12 sons of Jacob had 54 children *before* the descent into Egypt; how many had they after? Dr. Colenso *assumes* that they had none. His assumption is not only without proof; it is contrary to every probability. These men were at the time in the full vigour of life. Reuben the eldest, if we take Dr. Colenso’s own computation, was about 46; Joseph was but 39; Benjamin younger still. It is, therefore, most reasonable to suppose that several of them, if not all, had children born to them during the sojourn in Egypt. This will be the more evident when we remember that Jacob, their father, had 12 sons born to him

*after he had reached* the age of 80; and that Isaac, their grandfather, was 60 when Jacob and Esau were born.

Moreover we can produce a distinct statement with regard to Joseph, that he had children born to him after the descent, “And Jacob said unto Joseph: ... Thy two sons Ephraim and Manasseh, who were born unto thee in the land of Egypt, before I came unto the land of Egypt, are mine; Ephraim and Manasseh, as Reuben and Simeon shall be mine. And *thy issue which thou begettest after them*, shall be thine, and shall be called after the name of their brethren in their inheritance” (*Gen.*, xlviii. 3, 5, 6). It may be objected that in the twenty-sixth chapter of Numbers, where the grandsons of Jacob are enumerated, no mention is made but of those born before the descent. We answer, that in that chapter those only are enumerated who *gave their names to families*; and it would seem that the grandsons of Jacob born after the descent, did not give their names to families, but, like the younger sons of Joseph, were “called after the name of their brethren in their inheritance”. We may observe that this oversight of our author has drawn him into a twofold error. First, it has led him to *underestimate the average number of children* in each family; secondly, it has led him to *underestimate the number of males in the first generation*, since *all* the grandsons of Jacob, according to his argument, belonged to the first generation.

Dr. Colenso refers, however, to the genealogies in the sixth chapter of Exodus (verses 14-25), and elsewhere, to show that the families during the sojourn in Egypt were not remarkably large. This argument is of no value if he do not prove that these genealogies give *complete lists of all the sons* in each family. It appears to us that there is no evidence to this effect. The genealogies were generally introduced for some specific purpose, as for instance, to trace the pedigree of the most remarkable men; and for this purpose it was quite unnecessary that *all the members* of each family should be distinctly enumerated. A striking illustration occurs in a passage already quoted: “And the sons of Pallu; Eliab. And the sons of Eliab; Nemuel and Dathan, and Abiram” (*Num.*, xxvi. 8, 9).<sup>[5]</sup> It is here explicitly stated that Pallu had *sons*; and yet only *one* is named. Eliab is probably selected from the rest as he was the father of Dathan and Abiram; for of them it is immediately added that they were “famous in the congregation”, and that “they strove against Moses and against Aaron” in the rebellion of Korah.

Enough, we think, has been said to satisfy our readers that Dr. Colenso has completely failed in his argument. He has failed to show “beyond a doubt, that it is quite impossible that there should have been such a number of the people of Israel in Egypt, at the time of the Exodus, as to have furnished 600,000 warriors in the prime of life, if we will take the data to be derived from the Pentateuch itself” (p. 101). On the contrary, we have proved that there are many circumstances overlooked, misstated, or denied, by Dr. Colenso, which are quite sufficient to explain what he regards as impossible. More than this we cannot do. How far each circumstance in particular contributed to swell the number of the people, must for ever remain uncertain. While the sacred narrative is silent on the subject, it would be unreasonable to ask such a question, and absurd to undertake to answer it. If we wished to imitate the example of Dr. Colenso, we might easily form conjectures, and set them down as facts. But we believe that such a course would be injurious to the cause of truth, which we defend. It is much better candidly to admit that we cannot determine with accuracy the number of servants that accompanied Jacob into Egypt, or the number of servants and proselytes that afterwards became incorporated with the Hebrew people; that we cannot ascertain the precise number of generations in each family, or the average number for the entire nation; lastly, that we cannot estimate how far polygamy and intermarriage with the Egyptians may have conduced to the wonderful increase of population.

But, though we are unable to say how the population *did increase in point of fact*, we can easily show how it *may have increased*. For this purpose we venture to lay before our readers a calculation by which we account for the fact in a manner perfectly conformable to all the “data of the Pentateuch”. First, as regards the number of generations. Since a generation is descent from father to son, the length of time to be allowed for a generation will be determined in each particular case by the age of the father when the son is born. This of course will vary for different families, and even for different members of the same family. We may, however, fairly suppose that, among the Hebrew people in Egypt, taking one family with another, every man on an average had children born to him at the age of 32. Thus 32 years would be the average length of each generation. The males of the first generation, as we have before seen, were all living at least three years before the descent into Egypt, or 218 years before the Exodus. For

each succeeding period of 32 years we must add, according to our calculation, one generation more. In 218 years there are just six periods of 32 years each, and 26 years over. Therefore the whole of the seventh generation must have been living 26 years before the Exodus.

Next we may estimate the number of males in the first generation at a hundred and twenty-five. To this generation would belong all those, who, at the time of the descent, were above the age of three, and under the age of thirty-five. Those who were three, or less than three, should not be counted, since they belonged to the second generation: those above thirty-five should be excluded, because when the first generation was completed, they had already reached the age of thirty-two; therefore, according to our calculation, they must at that time have had children who would belong to the first generation; they could not then belong to it themselves. Now we may suppose that, amongst the followers of Jacob, there were at least sixty males of various ages between these two extremes. This estimate will appear moderate indeed, when we remember that Abraham had been able to lead forth an army of 318 *trained servants, born in his house* (Gen., xiv. 14). It will not be unreasonable to compute the accession of extra servants and proselytes at 15. If to these 75 we add 50 as the number of males within the prescribed limits, in Jacob's own family, we shall have attained our estimated figure, 125. Lastly, our readers will find little difficulty in admitting an average of four sons in each family.

From these data we obtain the following results:

| Number of males in the |             |         | all living |     | years before<br>the Exodus. |
|------------------------|-------------|---------|------------|-----|-----------------------------|
| <i>first</i>           | generation, | 125     | „          | 218 | „                           |
| <i>second</i>          | „           | 500     | „          | 186 | „                           |
| <i>third</i>           | „           | 2,000   | „          | 154 | „                           |
| <i>fourth</i>          | „           | 8,000   | „          | 122 | „                           |
| <i>fifth</i>           | „           | 32,000  | „          | 90  | „                           |
| <i>sixth</i>           | „           | 128,000 | „          | 58  | „                           |
| <i>seventh</i>         | „           | 512,000 | „          | 26  | „                           |

It is certain that a large number of the sixth, and probably a few of the fifth generation were still living at the time of the Exodus. Moreover, since

the eighth had been coming into existence during the last period of twenty-six years, many of that generation must have already attained the age of twenty. If to all these we add the entire of the seventh generation, we shall have no difficulty in making up 600,000 men of twenty years old and upward.

Now we admit that all this calculation is founded on conjectures; and that it is very likely these conjectures do not in every respect represent what actually took place. But we maintain that they are at least possible in themselves, and perfectly consistent with the narrative of the Pentateuch. Consequently, the number of the Israelites at the time of the Exodus does not involve any contradiction, and the thesis of Dr. Colenso is false.

There is another process of calculation by which we may arrive at the same conclusion. Scientific men have been able to throw some light on the principles which conduce to a rapid increase of population. With much research they have collected statistical tables, which afford results very applicable to our present inquiry. They have conducted their studies on purely scientific grounds, and without any special reference to the Bible narrative. We may, therefore, avail ourselves of their conclusions as representing the unbiassed opinion of competent and impartial judges. “It has been constantly remarked”, says Malthus,<sup>[6]</sup> “that all new colonies, settled in healthy countries, where room and food were abundant, have constantly made a rapid progress in population. Many of the colonies from ancient Greece, in the course of one or two centuries, appear to have rivalled, and even surpassed their mother cities”. He gives examples also from the colonies that first settled in North America. Without any fresh immigrants, the population was doubled sometimes in twenty-five years, sometimes in twenty-two, sometimes even in fifteen.<sup>[7]</sup> From a table given by Euler, it appears that a population may double itself in  $12\frac{4}{5}$  years; and the author does not hesitate to say that this “is not only a possible supposition, but has *actually occurred* for short periods in more countries than one”.

Now the circumstances of the Israelites in Egypt were peculiarly favourable to an unusually rapid increase. To say nothing of the special blessing of God which attended them, they were dwelling in a country of which the inhabitants were noted for a remarkable fecundity; the climate

was genial; the land fertile; the means of living abundant. Let us then take a medium between the extreme figures mentioned above, and suppose that during the whole period of the sojourn in Egypt, the population was doubled every eighteen years. This supposition may or may not be true; but it is certainly not less in harmony with the repeated declarations of the Pentateuch, than it is with the cold calculations of science. If our former estimate be accepted, the total population at the commencement of the sojourn in Egypt would be about 500; that is to say, four times the number of males between the ages of three and thirty-five:— $125 \times 4 = 500$ . Upon this foundation we may construct the following table:—

| year of<br>the Sojourn. | Total number of the<br>Hebrew people, |
|-------------------------|---------------------------------------|
| 1st                     | 500                                   |
| 18th                    | 1,000                                 |
| 36th                    | 2,000                                 |
| 54th                    | 4,000                                 |
| 72nd                    | 8,000                                 |
| 90th                    | 16,000                                |
| 108th                   | 32,000                                |
| 126th                   | 64,000                                |
| 144th                   | 128,000                               |
| 162nd                   | 256,000                               |
| 180th                   | 512,000                               |
| 198th                   | 1,024,000                             |
| 216th                   | 2,048,000                             |

Thus it would appear that, if we hearken to the authority of scientific men, who have made the principles of population the subject of their special study, we may still further confirm the accuracy of those figures which to the mind of Dr. Colenso present nothing but “multiplied impossibilities”.

We have led our readers a long and weary journey. We have conducted them through a bewildering labyrinth of names and numbers, of intricate genealogies and complicated calculations. Our way indeed lay through the midst of a beautiful country; and as we passed along, we now and then caught a glimpse, as it were, from a distance, of some sublime or touching scene which has many a time inspired the genius of the poet, the painter, or

the sculptor. But we had an end in view which forbade us to turn aside from our rugged and toilsome path, even though it were to enjoy the varied charms of the most ancient, the most simple, the most sacred of histories. Like the soldiers of Saul, we might not even put forth our hand to taste of the honey that was dropping from the trees around us. If, however, like them, we have gained the victory and driven the enemy from his stronghold, our labours have been richly rewarded, and our readers have not toiled after us in vain.

ERRATUM.—We beg to call attention to an error which occurs in the last article on Colenso, page 517. The passage to which we refer is printed thus:—“According to the Mosaic, etc.... 99,989 families”. Our readers will observe that the number of families in the case supposed would be 200,000 instead of 100,000. By this alteration the character of the argument remains unchanged, but its force is considerably increased.

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## THE BISHOPS OF OSSORY.

When illustrating the lives of the Irish Bishops, Ware and Harris, as well as our modern annalists, seem to have devoted special care to the See of Ossory, and hence its series of bishops is one of the most complete and unbroken that we find in the history of our Church. It is in the latter half of the fourteenth century that the first great difficulty occurs. In 1367 a parliament was held in Kilkenny, and the famous Act was passed commonly styled, *The Statute of Kilkenny*, which, amongst other signatures, presents that of “William, Bishop of Ossory”.<sup>[8]</sup> Its accuracy in all the other signatures, and in several minor details, leaves no doubt as to the genuineness of the prelate’s name, who at that time ruled the See of St. Canice. Nevertheless, such a Bishop finds no room in the series of episcopal names given by Ware and succeeding writers. John of Tatenal, they say, was appointed to the see in 1360; and his death did not take place till 1370: thus the above William is altogether excluded from the episcopal succession.

The chroniclers of the Augustinian order, however, enable us to solve this difficulty. *John de Tatenal*, or as he is sometimes called *de Tayenal*, was a member of that distinguished religious body, and was appointed to the See of Ossory in 1370, the same year which saw him carried to the tomb.

There was, indeed, another Bishop *John* appointed in 1361. On the 20th of November that year, he promised to pay to the “Camera Apostolica” the diocesan tax of 200 florins, equal to £40; and it is remarked that this is a proof of the decay of the revenues of Ossory, since only forty years before, on the appointment of Bishop Richard, the tax amounted to 700 florins. On the 9th of January 1361/2 permission was granted to this bishop to return to his see, and from the brief published in *Monumenta Vaticana*, pag. 319, we learn that he had been consecrated some time before, by Raymond, Bishop of Praeneste, then resident with the Papal court in Avignon. In 1364 Urban V. (xii. Kal. Aprilis, an. 2<sup>o</sup>) granted to him special faculties and privileges,



but no mention is made of him in the following years. Thus we have full room for Bishop William, appointed before 1367, and deceased about 1369.

Dr. John Tatenal, as we have seen, was appointed in 1370, and died before Christmas the same year. *Alexander Petit* alias *de Balscot*, canon of the Cathedral of Kilkenny, a man of great learning and wisdom (as Ware writes), was elected by the chapter to fill the vacant see; and though this election was irregular and invalid, Gregory XI. confirmed him as Bishop of Ossory by Brief of 10th February, 1371. He subsequently was appointed by the crown to some of the highest offices of the kingdom, and having held the see for fifteen years, was translated to Meath in 1386.

*Richard Northalis*, a Carmelite, was next appointed to the See. His promise to pay the usual tax of 200 florins to the “Camera Apostolica” is dated 17th Feb. 1386/7. He was translated to Dublin in 1395, not in 1396, as Ware supposed. His successor *Thomas*, a Carmelite, surnamed *Peeverell*,<sup>[9]</sup> signed the usual obligation a few days after his appointment on the 3rd of November, 1395, and after an episcopate of three years, was translated to Leighlin, on 23rd January, 1398/9, whence on the 2nd July following he was again translated to Llandaff, in Wales (*Biblioth. Carmelit.*). He was succeeded in Ossory by *John Wultham* (sometimes written *Wulcan* or *Vulcan*), who was probably appointed on the very day of Dr. Peeverell’s translation to Leighlin, and on 1st of February, 1398/9, signed an obligation to pay the usual tax of 200 florins for himself, and in addition 200 florins for his predecessor Thomas, who had not been as yet able to satisfy his obligation. This bishop belonged to the order of St. Augustine, and was translated to Dromore before the month of July, 1399. Dr. *John Griffin*, Bishop of Leighlin, was soon after translated to our See by brief of “6to Nonas Julii, 1399”, and on the 12th of July, he signed an obligation “to pay 185 florins and 44 solidos as portion of the tax unpaid by his predecessor John, and in addition 100 florins still due from the time of Dr. Thomas Peeverell”. It is added that no tax was imposed upon himself, as his appointment was the second one which had been made within the term of twelve months.

Early in the following year Dr. Griffin was summoned to his reward, and in May, 1400, another Bishop *John* was appointed to the See of Ossory. This bishop is only known to us from the lists of the Apostolic Chamber. On

the 14th of May, an. Dom. 1400, he signed his own individual obligation for the sum of 200 florins, and moreover promised to pay 81 florins and 47 solidos “*pro residuis Domini Johannis prae-antecessoris sui*”. On the 26th of September, the same year (1400), Pope Boniface IX. advanced *Roger de Appleby* to the vacant see,<sup>[10]</sup> and on the 28th of the same month, it is entered in the books of the Apostolic chamber, that he “*ratas habuit obligationes, tum Johannis sui praedecessoris immediati tum alterius Johannis in Floren. 81 et solid. 47: pro se autem nihil obligavit quia fuit facta promotio bis in anno*”.

The successor of Bishop Rogers was according to Ware, the *John Vulcan*, whom we have already seen appointed to this see in 1398/9, and the year 1404 is assigned as the probable date of his accession. Here again the list of taxes paid to the *Camera* comes to our aid. It tells us that, on 17th November, 1402, “*Johannes Walteri*”, Bishop elect of Ossory, promised the usual sum of 200 florins, and also the residue of the former debt of his predecessor John, viz., flor. 81, and solid. 47. It was, probably, the similarity of name that induced the learned writer to transplace Dr. Wultham, and make him successor of Roger Appleby in the see of St. Canice.

*Thomas Snell*, Archdeacon of Glendalough, who had held the see of Waterford and Lismore since 1399, was next appointed to this see. Ware, indeed, dates his appointment to Ossory in 1405, but the lists to which we have already so often appealed in this paper, attest that he signed the usual obligation on being appointed to this see on the 11th March, 1407/8. This bishop bequeathed to his successors a mitre adorned with precious stones, and presented to his church some richly ornamented vestments. Rev. William Purcell appeared in the Council of Constance in the beginning of 1416, as proxy of our bishop, as we learn from Martene, *Veter. Monument.*, tom. vii. col. 1222.

*Patrick Ragged* on the death of Bishop Thomas, was translated from the see of Cork to Ossory, by brief of 15th of December, 1417. An ancient writer gives him the character of “a prelate who governed his flock with justice and piety, and instructed them both by word and example.” He was appointed agent of the *Camera Apostolica* in Ireland on the 11th January,

1417/8; and he died, not on the 20th of August, as Ware arbitrarily asserts, but in the first month of 1421.

*Dionysius O'Dea* was appointed to the see vacant *per obitum Patritii*, by Pope Martin V., in the beginning of August, 1421, and on the 6th of the same month signed his obligation for the usual tax of 200 florins assigned for his see.

*Thomas Barry*, or as he is styled in the Roman lists, *Thomas Baury*, made the usual declaration on the 5th of April, 1527, having been appointed some days previous Bishop of Ossory. During his episcopate, a famous controversy was carried on before the tribunal of Pope Nicholas V., regarding the parochial church of Callan, which is described as *alias Kilbride*, that is, dedicated to St. Brigid. This controversy was not decided till the pontificate of Pope Paul II., some years after the death of our Prelate.

*David Hacket*, prior of the Augustinian monastery of Ahassel, dedicated to SS. Edmund and Martin, and situated in the diocese of Cashel, was advanced to our see by Pope Pius II., and was consecrated *in curia Romana* in the year 1460. When signing his usual obligation on 14th July, 1460, he is still styled *Episcopus Ossoriensis electus*. He died, according to Ware, on the 24th October, 1478.<sup>[11]</sup>

*John O'Hadian*, who is styled *Hedayn* in the Consistorial Acts, received from the Holy See the Archdeaconries of Cashel and Ossory on the 8th of January 1459/60 (*Monument. Vatic.*, pag. 424), and on the 15th January, 1479, was proclaimed in consistory Bishop of Ossory. It is added in the record of his appointment that, "die 21 Februarii sequentis consecratus fuit in ecclesia S. Tryphonis de Urbe a Benedicto Archiepo. Mitilenensi, assistentibus sibi Stephano Archiepo. Antibarensi et Stephano Sagiensi Epo". He was appointed collector of the Apostolic taxes in Ireland in 1482, and his death is recorded on 6th of January, 1486/7.

*Oliver Cantwell*, who, in various entries of the Vatican archives, receives the names *Cantnel* and *Wertell*, was advanced to the episcopate in consistory of the 26th March, 1487, the see being described as vacant *per obitum Joannis extra curiam*. This illustrious bishop belonged to the order of St. Dominick, and De Burgo, in *Hib. Dominic.*, pag. 478, gives a letter of Innocent VIII., dated 27th March, 1487, authorizing him to be consecrated

by any bishop holding communion with the Holy See. The first years of his episcopate were disturbed by the rebellion of Lambert Simnel and its accompanying disorders, and we find published by Rymer a letter of the above-named Pontiff, Innocent VIII., exhorting the Bishop of Ossory and the other Prelates of the Irish Church to use their influence in quelling the rebellious excitement which prevailed throughout our island. Dr. Cantwell governed the diocese for almost forty years, and in a very advanced age he passed to his eternal crown on the 9th of January, 1526/7.

*Milo Fitzgerald*, better known by the family surname of *Baron*, belonged to the order of St. Augustine, and was prior of the famous monastery of Inistiogue. On the death of the aged Bishop Cantwell, Dr. Fitzgerald was advanced to the vacant see, whilst at the same time he received an apostolic dispensation permitting him to retain his former priory. He is commemorated in the papers of the *Camera Apostolica* as having paid a portion of the diocesan tax on 10th July, 1528; and from other sources we learn that he presented to his church a marble altar, and bequeathed to his successors a pastoral staff of silver. By one of the usual *voluntary surrenders* of the 31st year of Henry VIII. (1540), this good bishop was compelled to hand over his priory to the agents of the crown. The first to enjoy its spoils was Sir Richard Butler, but on 20th December, 1551, an order was issued by the Lords of the Council in England, commanding it to be given to *Edward Seyntloo* for twenty-one years, “in consideration of his painful and diligent services in the late wars in Ireland” (Morris, i. 255). Nevertheless, in 1567 Queen Elizabeth ordered it to be again leased to Sir Edmond Butler, together with the monastery of Connall and the greater part of the possessions of the Abbey of Baltinglass, and thus were the offerings of the piety of our fathers sacrilegiously plundered in order to gratify the vanity and the pleasures of the retainers of the crown.

Bishop Milo ruled the see of Ossory till his death in 1550. From several letters written by the Lord Deputy immediately after his demise, we learn what little progress had been made by the so-called reformation in Ossory at this period. For instance, he thus writes on the 5th of December, 1550:—

“And now as touching the bishoprick void (of Ossory), it shall be well done some honest man be placed therein for the advancement of religion, which, although it hath been here much talked of these

two or three years past, yet hath it been smally set forth in deed, and perchance if the disposition of men here were thoroughly known, it would be thought a thing not easy to be brought to pass". (Shirley, *Original Letters*, pag. 46).

It is not easy to understand how this important see was allowed to remain vacant for more than two years. As yet no record has been discovered of a canonically appointed successor till the accession of Queen Mary. But we feel persuaded that, at this time, according to the unvarying custom of the Holy See, such a successor was appointed by Rome. Even the king's letter appointing John Bale to the see, is only dated 22nd of October, 1552 (Morrin, i. 267). In this letter the king commands the lord deputy to receive the new bishop as one highly commended; and yet the order for his consecration was not issued till the 1st of February following.

Dr. Bale was one of the first founders of the Establishment in our island: in fact he was for awhile the great pillar of that state institution, and hence has found many eulogists amongst those who succeeded him in the enjoyment of its temporalities and rich benefices. Thus Dr. Mant devotes several pages of his *History of the Irish Church* (i. 220, seqq.) to commend "the zeal, assiduity, activity, and devotion to the reformed faith in opposition to the Romish errors", displayed by this apostle of the Established Church. It will not, therefore, be uninteresting to inquire a little into Dr. Bale's true character, although we do not reckon him amongst the bishops of this see, that thus, whilst we await the *historical* grounds on which Mr. Whiteside *promises* to justify that most monstrous institution which ever provoked a nation's anathema, we may supply one faithful sketch at least for the consideration of our readers.

He was born in Suffolk in 1495, and having embraced a religious life, passed through the various scientific grades in Norwich and Cambridge. Notwithstanding his solemn vows, he availed himself of the libertinism which prevailed in 1530, to take a wife, and adopt the new tenets of the Reformers. He himself avowed that *a temporal lord* was the instrument of his "conversion", and Nicholson, in his *Historical Library*, adds, "that in truth his wife Dorothy had as great a hand in that happy work as the Lord". More than once he was threatened with imprisonment, but he always escaped through the protection of Lord Cromwell, on whose death he fled

from the kingdom and took refuge in Germany. On the accession of Edward VI., he returned to England, and happening to be presented to the king in Southampton, received at once a promise of the vacant bishopric. Bale first arrived from England at Waterford, and he himself attests that “he was forcibly impressed by the appearance of the old idolatry”;<sup>[12]</sup> that is, he found there a fine devoted Catholic people, true to the faith of their fathers. His consecration in Dublin met with great opposition “*from the popishly inclined clergy*”, and even the two Irish assistant bishops protested against the use of the English liturgy on the occasion.<sup>[13]</sup> During the six months that he held the temporalities, he tells us that he “enjoyed great peace”, but at the same time both clergy and people remained devotedly attached to the Catholic faith: “helpers”, he says, “I found none among my prebendaries and clergy, but adversaries a great number”. On the accession of Queen Mary, his episcopal career was quickly brought to a close in Ossory. “On the 20th day of August”, he writes, “was the lady Mary with us at Kilkenny proclaimed queen of England, France, and Ireland, with the greatest solemnity that could be devised of processions, musters, and disguisings, all the noble captains and gentlemen thereabout being present. What ado I had that day with the prebendaries and priests about wearing the cope, crosier, and mitre in procession, it were too much to write”. On Thursday, the 31st of August, the clergy and people of that Catholic city assembled to proclaim their faith: as yet no statute or proclamation had been made, but they could not brook any longer delay: “They rang all the bells in that cathedral, minster, and parish churches”, (writes Bale), “they flung up their caps to the battlements of the great temple; they brought forth their copes, candlesticks, holy water stocks, crosses, and censers; they mustered forth in general procession most gorgeously all the town over, with *Sancta Maria, ora pro nobis*, and the rest of the Latin litany”.

Even here, however, the trials of Dr. Bale were not terminated. A party of the citizens, having at their head an individual named *Barnaby Bolger*, surrounded his house, threatening him with death, unless he ceased to defile by his presence their Catholic county. It was only by the interposition of the mayor with four hundred soldiers, that the commotion was partially quelled; at night Bale made his escape to Dublin. Instead of protection, he found that new dangers awaited him in that capital of our island; in the disguise of a sailor he was again obliged to seek safety by flight; sailing for Zealand, as

*Harris* tells us, he was taken prisoner at sea, and tried for treason in Cornwall; escaping thence he sailed for the Continent, but was once more seized by pirates, and sold as a slave;<sup>[14]</sup> having paid his ransom, he lived during the following years at Basle and Geneva. On the accession of Elizabeth he returned to England, but never sought to be restored to the See of Ossory.

The writings of Bale acquired some celebrity on the continent, where they were nearly all composed. They are full, however, of the vilest calumnies against the religious orders and the Holy See, and are written with characteristic acrimony of style. Hence Fuller, in his *Catalogue of English Writers*, says: “Bale knew not how to moderate his passions, and hence deservedly received the agnomen *Biliosus Balaeus*”. Montacutus also (in *Apparat.*, § 83) styles him, “impotentis linguae et calami scriptor”. Pitseus is still more severe, for he thus epitomizes Bale’s character, “omnia foedissimus scurra mendaciis et calumniis replevit”. Andrew Valery, in his preface to the *Bibliotheca Belgica*, writes, “Joannes Balaeus homo impius quidem, nominari tamen hoc loco vel ideo potuit ut quis e sordibus gemmas legat”; and in fine, Gerrard Vossius condemns his bad faith in treating of the early writers, “unum scio in priorum saeculorum scriptoribus non raro Balaei fidem claudicare” (*De Historicis Latinis*, lib. i. cap. 32, pag. 170). Such was the character of this boasted champion of the established church in our island! But it is time to return to the successors of saint Canice.

John Thonery, a native of Kilkenny, was nominated to this see by Queen Mary. The following is the letter of the queen to the lord-deputy, dated October the 14th, an. 1<sup>o</sup> (*i. e.* an. 1553):

“Whereas we perceive the bishoprick of Ossory to be void, we have thought good, for the learning and integrity of life which we understand to be in John Thonery, bachelor of divinity, to nominate and appoint him to the same bishoprick: these shall be therefore to will and command you to make letters-patent under our great seal to the said John, of the bishoprick, and to give further order for his consecration and installation, according to the order of our said realm”.



The congé d'elire to the dean and chapter of the cathedral of St. Canice was issued on December 26th, and the mandate for his consecration was given on 31st December, the same year, (Morrin, i. 306). This prelate is described as a benefactor to his see, and he is especially commended for taking care "to have the antient charters of his church, which otherwise would have perished, transcribed and sealed with his seal" (Ware, pag. 418). Though summoned to Parliament as bishop of Ossory in the first year of Elizabeth, and receiving commissions from the crown even in Elizabeth's reign (Morrin, i. 370, 412), the government found him inflexible in maintaining the Catholic faith, and consequently declared that his election from the beginning was void, and that his acts as bishop could not be valid, since the heretical Bishop Bale was still living.<sup>[15]</sup> In this, however, the government fathers of the Establishment only gave another proof of their inconsistency, for a few years before, they declared that the fact of the flight of Dr. Dowdall rendered vacant the see of Armagh, and they actually proceeded to the consecration of Goodacre for that see, though Dowdall was still living. There is one great advantage, however, which we derive from the hostile course pursued by the agents of Elizabeth in regard to Dr. Thonery; it supplies us with the clearest proof we could desire of his unflinching devotedness to the Church of his fathers; and when we find Sir W. Cecil, on the 4th July, 1565, conveying instructions to the lord deputy, that, "Her majesty understanding that the archbishoprick of Cashel and the bishoprick of Ossory have been long void, whereby hath grown lack to the ecclesiastical government there", would wish to have the sees united, and one bishop appointed "who might serve as counsellor there" (Shirley, *Orig. Lett.*, 207), we are more than justified in concluding that our Catholic bishop was faithful to his trust, and successfully guarded the flock entrusted to his care against all the inroads of heresy. He passed to the crown of his zeal and labours about the year 1567.

The next bishop was *Thomas Strange* (or *Strong*), appointed in consistory of 28th March, 1582. The following is the consistorial entry:

"Die 28 Martii, 1582.

"Sua Sanctitas referente Card. Senonensi providit ecclesiae Ossorien. in Prov. Dubliniensi, a pluribus annis vacanti per obitum Joannis O'Thonery, in dicta dioecesi defuncti, per Thomam Strong,



Presbyterum Waterfordiensem, Doctorem Theologiae, in curia praesentem”.

In the Vatican list of the Irish clergy in 1579, Dr. Strong is twice commemorated, first, under the heading of those who were pursuing their studies on the Continent we find him described as “Thomas Strongius, Parisiis, annorum 32”; and again, under the heading: “Qui sunt in Hibernia fideles operarii vel certe facile eo transmitti possunt”, we find him thus mentioned in the fourth place: “D. Thomas Strong, Waterfordiensis: hic tenet utramque linguam Anglicanam et Hibernicam sed melius Anglicam” (*Ex Archiv. Vatic.*) Immediately after his consecration he set out for the theatre of his missionary labours; but it was only “in ruffling apparel with gilt rapier and dagger”,<sup>[16]</sup> that a bishop could then visit his flock, and so vigilant were the agents of Elizabeth in his pursuit, that he was soon compelled to seek refuge in Spain. It is thus the bishop of Killaloe writes on 29th October, 1584:

“Thomas Ossoriensis episcopus mansit in Hibernia aliquot mensibus in habitu saeculari, tandem contulit se ex Hibernia ad Hispaniam”.

We cannot say with certainty whether Dr. Strange was able at any time subsequently to return to his see. Whilst in Spain he devoted himself to the sacred ministry as assistant of the bishop of Compostella, and he died there (according to the new computation) on 20th January, 1602. The contemporary, Malachy Hartry, in his *Triumphalia Sanctae Crucis*, thus briefly sketches his career:

“Dum in hac sua patria degisset, Catholicae fidei causâ et ecclesiae permulta et gravissima a persecutoribus sustulit et in Hispaniam ire cogitur; Compostellae in Gallicia, demum anno Domini 1601. Januarii die 20<sup>o</sup> obiit atque in claustro Cathedralis Ecclesiae D. Jacobo consecratae, sub marmoreo lapide, uti vidi cum Strangorum stemmate inciso, terrae traditur”.

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## **PETER FRANCIS XAVIER DE RAM.**

The great question of the present day is the question of education. The Catholic Church, as the infallible teacher of men, claims for herself the right to control human thought, and exercises that right by sitting in judgment on each newfangled system as it appears. This claim is peremptorily rejected by the civil power, which, on its part, wishes to make of education a department of government. The science of the age sides on the whole with the civil power as against the Church. Towards the ecclesiastical authorities it assumes at times an air of pity, as towards men whose otherwise estimable qualities are warped by a religious bigotry which is eminently unscientific; at times it exhibits irritation and distrust; at times again it is in open and undisguised antagonism. In the face of a jealous government, to urge, and to urge successfully, the inalienable rights of the Church, requires no ordinary tact; in the face of the contempt, or distrust, or antagonism of the intellect of a country, to take every understanding captive unto Christ, demands no ordinary courage and ability. And yet this is what is meant by founding a Catholic University; and this has been achieved in the nineteenth century in Belgium, under God, through the instrumentality of one priest, Monsignor Peter Francis Xavier De Ram, the late Rector of the Catholic University of Louvain. A life such as his is a model which all may study with great profit. It is only with his spirit and through his principles that we may hope to obtain for Ireland what he obtained for Belgium—the full liberty of Catholic education.

De Ram's great work, but not his only work, was the foundation of the Catholic University of Louvain. At the time when he was called by the bishops of Belgium to form and direct the new institution, he was diligently engaged in promoting the spread of good books, in illustrating the antiquities of his country, and especially in publishing the lives of the saints and other distinguished men who have shed glory on his native land. Almost in his infancy he imbibed a special predilection for the study of the lives of the saints from a holy aunt, a religious of the Premonstratensian

Order, who lived in his father's house, having been driven from her convent at the time of the first French Revolution. Even before he had completed his clerical studies, this taste made him publish, as author or editor, several works bearing on the lives of the saints, and before he was twenty-five years of age he undertook a new edition in the Flemish language of the great works on this subject by Alban Butler and Godescard. This taste he preserved through life, and to it when fully developed we are indebted for his other great works, the *Collections of Belgian Synods*, the *Synodicum Belgicum*, the *Synodicum Antverpiense*, and *Ecclesiastical History of Belgium, Belgica Sacra*, of which he published the plan in 1830, for which since then he has been collecting most abundant materials, but which, alas! he has not lived to finish.

Later on, we find him labouring strenuously and successfully to obtain for the Jesuit Fathers a state subsidy to enable them to continue the stupendous undertaking of the old Bollandists, the *Acta Sanctorum*. Thanks in great measure to this help, the noble work is now making progress to the great glory of God, to the advantage of religion, and the honour of Belgium. And among the first eulogists of the departed prelate, we have the great Jesuit Father de Buck, the head of the present Bollandists in Brussels, to whose notice on Mgr. de Ram we are indebted for much that appears in this sketch.

In fine, this same taste for historical research, especially in the history of his native land, made him take a most distinguished place in the Royal Academy of Belgium, of which he was for thirty-one years one of the chief members, and especially in the Royal Commission of History, founded precisely for the promotion of the study of the national annals. Indefatigable in his labours, never-failing in his attendance at the meetings of the Commission, bringing to them the rich treasures of his learning, joined to the affability and conciliatory tone which always characterised him, we are told by one who knew him there, that never during that long period was there between him and his associates in that great work the least shadow of a difference. True to the end to his work for religion and his country, one of his last public acts, two days before his death, was to assist at a meeting of the Academy; and he leaves unfinished three works undertaken in the same holy cause: the Chartulary of the Abbey of Cambron, the preparation of materials for a general and diplomatic history of the University of Louvain,

and the collection and arrangement of the short Flemish chronicles scattered in manuscript through the Belgian libraries, with a view to their forming a compendium to the great chronicle of De Dyncer.

But it is not with De Ram's historical labours, great as they were, that we are chiefly interested. His great work for us has been the Catholic University of Louvain. That university was proposed by his Holiness Pope Pius IX. as the model which our bishops were to have in view in founding the Catholic University of Ireland. Over it De Ram presided for more than thirty years, in fact since its foundation; the difficulties, seemingly insuperable, with which he had to contend, were almost identical with those that press our Irish institution; the means for overcoming these difficulties in the two countries were very similar, and we may hope that the Catholic University of Belgium is but the harbinger of the success of the Catholic University of Ireland.

The University of Louvain was called into existence to meet a condition of things, the parallel of which existed in Ireland in 1850, and to cope with dangers similar to those which, at that period, impended over the Catholics of this empire. In its working it has wedded together interests which the sophistry of the day makes it fashionable to represent as antagonistic. It is eminently national, eminently scientific, eminently Catholic. It cultivates literature with a zeal which does not interfere with its devotion to theology and other sacred studies, and pursues even the highest investigations of science in such a way as to prove that nowhere can freedom of scientific research find a more congenial home than in a Catholic university. These sentiments were eloquently expressed by one of the students of the university. M. Van Tomme, as he stood by the bier of Mgr. De Ram, spoke as follows, in the name of his fellow students who stood around him:

“The great work founded by the Belgian episcopacy has grown under the shadow of our political and religious independence, and, as our rector himself expressed it, ‘The university is not only a Catholic institution, but also a national institution’. Guided by this noble motto, he directed for thirty-one years the Catholic University, strengthening each day in our hearts the love of religion and of liberty, that two-fold foundation on which rests the glory of our past history, and which guarantees the future of our country. The care of

our souls, the cultivation of our minds, these were the objects most dear to his heart as a priest; his love for us made him find in us his reward, his joy, his blessing. How can I express his fatherly tenderness, his boundless devotedness to our interests, his delicate management of our national spirit of independence? These were the principles with which he ruled over this laborious and difficult work.... You know the blessed fruits produced in the education of our country by these gifts of mind and heart. Educational liberty, rescued bleeding from stranger hands, first took refuge in the bosom of our University, where Mgr. De Ram stretched out his arms to welcome it, and from that day forward watched over it with zealous care. Our University, the heiress of a glorious name, the offspring of liberty and of faith, under Mgr. De Ram's presidency, has nobly bound up together the past and the present. Those great works urged on with such ardour, the serried phalanx of youths who have gone forth from this Institution, the eminent men whom this University has given to our country and to the Church, all proclaim, that his devoted labours have not been vain, and point out to us unmistakeably the greatness of the loss sustained on this day by Catholic youth".

But we are anticipating the course of events, and we must take up from the commencement the history of this great man's connection with Louvain. We must even go back a little; for, as Father de Buck remarks, it is only thus we can correct some erroneous ideas, which have been freely circulated, and form some notion of the enormous difficulties which surrounded the foundation of the Catholic University of Belgium. Some of these erroneous ideas were thus expressed by Sir Robert Kane, President of the Queen's College, Cork, in his inaugural address at the opening of that establishment, on the 7th November, 1849:—

“After the revolution, which rendered Belgium an independent kingdom, the question of university education occupied the attention of its government as one of the greatest moment. The heads of the Belgian Church were fully consulted, and they surely deserved to be, from their right to coöperate in every measure of public welfare. The result has been the institution of three great colleges: one at Louvain, formed in the buildings of the old university, and hence

popularly called by the name of the ‘University of Louvain’; the second college situated at Liege; and the third in Ghent. Students follow their studies in any of these colleges, but they do not there get their degrees. What course did the Belgian authorities take, when, after the Revolution, they had in their own hands the power of giving to all those colleges a code of securities for faith and morals which might have served us here as a model? They demanded to have Louvain absolutely and exclusively under their own control, and consented to leave the colleges of Liege and Ghent in the hands of government absolutely, without any provision for moral discipline or religious instruction. What is the practical result? The College of Louvain contains only the university faculties, conducted on medieval models, and educating after the forms of old established universities. The Colleges of Ghent and Liege contain the practical branches, to which the majority of the young men attach themselves. The schools of mines and engineering are at Liege. The schools of mechanics and of practical chemistry are at Ghent. There are great schools of medicine at both colleges. Hence the practical education is conducted at those colleges where there is no religion and no discipline. In Belgium there are three colleges, one with ultra-ecclesiastical discipline, attended generally by Catholic foreigners, whom the traditional fame of the medieval university brings to Louvain. The other two are colleges without religion, to which the majority of Belgian students are drawn for practical education” (*Inaugural Address*, pages 23, 24).

In the course of the notice we shall see how many misstatements or mistakes are contained in these few sentences. In this place suffice it to say, that in the year 1864 alone, 325 students of the Catholic University of Louvain took secular Degrees, viz., 117 in Law, 125 in Medicine, 42 in Philosophy and Letters, and 41 in science; and since 1836, the large number of 6,881 took Degrees in those Faculties, viz., 2,028 in Law, the same number in Medicine, 1,838 in Philosophy and Letters, and 987 in Science. We have taken these figures from the official publication, *l’Annuaire*, or University Calendar, for 1865, and from it we also learn, that of 768 students, the total number in the university in the Session 1863-64, only 121 were Students of Theology. There were in the Faculty of Law 204, in that of

Medicine 230, in that of Philosophy and Letters 102, and in that of Science 111.

The true history of the circumstances, which preceded and accompanied the foundation of the Catholic University of Louvain, may be briefly told, as follows:—

By the treaty of Vienna in 1815, the Catholic and Protestant Netherlands, Belgium and Holland, were united under one king, William I. of the House of Orange. Immediately on his accession this monarch proposed for the acceptance of his whole kingdom a constitution which had been originally intended for Protestant Holland only. This constitution was condemned as anti-Catholic by the ordinaries of all the dioceses of Belgium. It was also rejected by the nobles or other chief men of the state. But it is worthy of remark, that, notwithstanding its condemnation by the bishops, only 126 voters out of 1325 alleged the attacks on the Church as the motive of their rejection of the constitution; and although 766 opposed it, 527 were found to support this most obnoxious portion of it. From this fact we see the great strength of uncatholic opinion in Belgium fifty years ago, since in so large a number of the chief men of the nation, so few were found to follow the teachings of their bishops.

The ten years which followed were spent by the king, William I., in endeavouring to undermine and still more weaken the Catholic and national feeling in Belgium—to mould that country and Holland into one nationality, which would be animated by one spirit, and that spirit Dutch, and consequently Protestant. For this purpose Dutch was made the official language for all administrative purposes and in all the courts of law and other legal transactions. The immediate result of this measure was to throw the education of the greater part of the Belgian youth into the hands of Dutchmen, and Dutchmen were also placed in every post of honour and emolument throughout the kingdom.

At length, on the 14th of June, 1825, two royal decrees were published, by which it was sought to transfer to the hands of the Protestant Government of Holland the education of the whole of the youth of all classes in Catholic Belgium. The chief provisions of the first of these decrees were as follow:

“Whereas many schools and institutions for the teaching of the Latin and Greek languages; and for the training of youth for the ecclesiastical state, as well as for other professions, have been established without our consent; and whereas Article 226 of the Fundamental Law<sup>[17]</sup> has given us the charge of public instruction ... desiring at the same time to facilitate and favour every arrangement by which young men may be fitted to become well educated ecclesiastics for the Roman Catholic Church,... we have decreed and do hereby decree....

“Art. 2. No Latin school, college, or athenaeum, shall be established without the express authorisation of the Department of the Interior.

“Art. 3. No one shall teach the Latin and Greek languages *to the children of more than one family at once*, either in primary schools or in private houses, without having first obtained in one of the universities of the kingdom the degree of *candidat* or of *Docteur en Lettres*.

“Art. 4. All colleges, athenaeums, or Latin schools, are placed under the control of the Department of the Interior.

“All colleges, athenaeums, or Latin schools, named in Art. 1, which at the date of this decree have not been approved as such by former decrees, *shall be closed at the end of the month of September, 1825, unless sanctioned before that time*”.

By the second royal decree a “Philosophical College” was established in Louvain for aspirants to the priesthood.

“Whereas some of the heads of the clergy have represented to us that the preparatory education given to young men intended for the ecclesiastical state is insufficient, and whereas we are desirous of providing means to form able ecclesiastics for the Roman Catholic Church.

“Art. 1. An establishment for the preparatory education of young Roman Catholics aspiring to the ecclesiastical state, shall be provisorily erected at one of the universities in the northern



provinces of the kingdom. This establishment, under the title of 'Philosophical College', shall be installed in a suitable building.... The students shall be received therein, with permission to wear the ecclesiastical habit.

"Art. 14, After the space of two years, to be counted from the opening of the 'Philosophical College', no philosophical lectures shall be given in the episcopal seminaries.... After the same time no student shall be admitted into the seminaries who shall not have duly completed his course of studies in the 'Philosophical College'. Each student of the same college must spend therein two years at least".

Thus did the Protestant King of the Netherlands think he had secured the undisputed control of the education, ecclesiastical and lay, of his Belgian subjects; but a very short time sufficed to convince him of his mistake. In vain was the short delay of two years allowed by these decrees of June 14th, refused by a subsequent enactment of the 11th July, which strictly forbade any student to be received from that day forward into any episcopal seminary in Belgium, unless he had completed his preparatory studies in the Philosophical College. In vain, by another decree of the 14th of August following, the youth of Belgium were forbidden to seek abroad the free Catholic education denied to them at home, and unless educated in one of the state institutions, declared incapable of holding any public office in the gift of the government, or exercising any ecclesiastical function within the kingdom. In vain, by a decree of the 20th November, were the superiors of the diocesan seminaries ordered to dismiss forthwith all youths received since the previous 11th of July; and the young men themselves also commanded to withdraw. On the other hand, in vain was all the influence of the government used to induce the bishops to approve, or at least tolerate, the new system. In vain was it sought to convince the Common Father of the Faithful that the Philosophical College was unexceptionable, by sending to His Holiness' own seminary in Rome some youths of exemplary life, who might, by their good conduct, belie the condemnation pronounced against the institution where they had made their early studies. The episcopacy of Belgium continued firm in its opposition, and the Sovereign Pontiff, Pope Leo XII., directed his internuncio at the Hague to explain that it was impossible for the head of the Catholic Church to assent to measures

destructive to the liberties of Catholics, or even to abstain from condemning them and protesting against them. The Belgian youths would not go to the Philosophical College; the few who went would not be admitted to Holy Orders by the bishops; and four years passed slowly along in passive opposition to the inroads of the government on Catholic education.

At last, on the 20th of June, 1829, the Dutch Government had to acknowledge itself vanquished. A decree was published abrogating so much of the legislation of 1825 as rendered attendance at the Philosophical College obligatory.

But along with this concession, and perhaps as it were to neutralize it, came new attacks in other ways on the liberties of Catholic Belgium. The royal message to the States-General at the beginning of 1830, recommended measures tending to a further *unification* of Belgium with Holland. Event followed event, and before the end of August a revolution broke out, and five of the best men in Belgium were installed at Brussels as a provisional government, under the presidency of the Baron de Gerlache, now head of the Society of St. Vincent de Paul, and president also of the recent Catholic congresses at Mechlin.

When the revolution broke out in 1830, the wisest members of the clergy said, as Father de Buck tells us, “*Fieri non debuit, sed factum valet*”, and the whole of the priesthood made common cause with the people. But, although the great masses of the country people remained faithful to Catholic principles, and although the nobility was returning to the practices of religion; although the persecution of the clergy by the Dutch Government had aroused the spirit of the nation, and several even of the infidel party began to lay aside their prejudices, and to express sympathy for the faithful priesthood of their common country, still the religious position of Belgium at that moment was most unsatisfactory.

Mgr. Van Bommel, Bishop of Liege, tells us, that “in 1838 there were in Belgium about 100,000 pseudo-liberals, deadly enemies of the Catholic Church, and most powerful”. “And it is not hard”, continues the learned prelate, “to explain the fact. For more than forty years all who are destined to occupy positions of importance were, in general, brought up without religious principles. Under the late government the religious element had no

part in university teaching; a part of this teaching had even been entrusted to men known to profess anti-religious principles. The wicked passions of men, dangerous occasions, bad example, an immoral theatre, and above all, a literature steeped in wickedness or hostile to Catholic principles;—in fine, the repeated declarations of men who, for party purposes, told the rising generation that to it alone should henceforth belong the rights of government—all resulted in raising this young generation to such a pitch of pride, independence, and licentiousness, that the sweet yoke of faith and the practices of religion became insupportable. Thus was there formed, outside of the masses, who remained faithful, a multitude of men of position and of influence, who know the religion of their fathers only from the bad books where it is attacked, from the stage where it is insulted, from the assemblies where its sacred ministers are ridiculed, from the newspapers where it is calumniated”.

Such was the religious position of Belgium when the Belgian episcopacy determined to found the Catholic University of Louvain. Public functionaries, barristers, physicians, merchants, manufacturers, nearly all the men of influence in the country, were infected with that false liberalism which, as Mgr. de Ram himself declared in November, 1830, made many who cried out most loudly for liberty, intend to use it only for self-aggrandisement and at the expense of Catholicity.

The prospect was uninviting; but the bishops were not to be daunted, although in February, 1834, on their publishing their decree establishing the university, there were disturbances in Brussels and in nearly all the episcopal cities. In December, 1833, they had obtained from Pope Gregory XVI. the sanction of their project and an apostolic brief for erecting the new university; and in June, 1834, they published in another meeting the general statutes for its government. On the same occasion the assembled prelates decided that the youthful M. de Ram—he had not yet completed his thirtieth year, and was then a canon of the Metropolitan Church of Mechlin, and professor of canon law and church history in the seminary of that diocese—should occupy a distinguished place in the new institution. He was formally appointed, within the next few months, head of the Catholic University of Belgium, with the title which in past ages appertained to that office—*Rector Magnificus*, and in that capacity assisted at the solemn

inauguration of the university in the Cathedral of Mechlin, on the 4th of November of the same year, 1834.

No sooner was he appointed to his high office than he set about finding professors for the faculties of theology, of science, and of philosophy and letters, which alone were to be opened the first year in the temporary home of the university in Mechlin. All the priests he selected were Belgians. Of the lay professors one was a Belgian, the rest were Dutch, French, Germans, and Danes. The following year the university was transferred to Louvain, and we have the formal act of agreement entered into in October, 1835, between Monsignor de Ram and the burgomaster of the city of Louvain, and afterwards solemnly approved by the bishops and municipality, by which on the one hand the bishops undertake to establish a full university course, and on the other hand the town council “undertakes to give gratuitously to the University the free use of the buildings *des Halles* (the great university lecture halls and other public buildings) *du Collège du Pape, du Collège des Vétérans, du Collège du Roi, du Collège des Prémontrés, du Collège de Saint Esprit, et du Théâtre Anatomique*”. Mgr. de Ram had now to organise the faculties of law and of medicine, and here his difficulties increased. Where was he to find professors in whom faith and true Catholic principles were united with that profound and varied learning which would fit them to occupy chairs in the new university? When we consider the deplorable state of Catholic education among the cultivated classes in Belgium at the time we speak of, these difficulties can be better imagined than expressed; and from these difficulties we may form a judgment of the great prudence and consummate wisdom through which Monsignor de Ram raised the institution to that proud eminence which is now enjoyed by her professors among the learned bodies of Europe. In all her faculties there are among the professors not only men of extraordinary learning, who unite clearness and method with depth and extent of knowledge, but also models of every Christian virtue; so that with good reason does F. de Buck conclude this portion of his notice of the illustrious prelate by exclaiming: “Yes, the professorial staff brought together by Mgr. de Ram, and which can henceforth be easily recruited from amongst the students of the university itself, is the chief glory, the undying crown of his rectorship”. But to understand the relations of Mgr. de Ram with the professorial staff of the university, we should read the funeral discourses

which he pronounced at the obsequies of those who preceded him in death. They are published in the University Calendars from 1838 to this time, and clearly prove the esteem and affection he bore to all who were united with him in the great work of his life, the care with which he selected them, the zeal with which he promoted the honour and happiness of each, and the sincere joy with which he was filled when well-merited success crowned their literary or scientific labours.

His devotedness to the students of the University was not less than his affectionate esteem for the professors. By every means in his power he sought to promote their spiritual, their intellectual, and even their temporal interests. And this anxiety for the welfare of the youth entrusted to him was not confined to the time they spent in the university; it followed them into after life. “His fatherly solicitude”, says M. Prosper Staes, of the Brussels bar, formerly a student of the university, “his fatherly solicitude was not limited to the youths who gathered round him each year for the purposes of study. It followed the students in their several careers through life. His old students always found in their rector one to encourage them, to counsel them, to gather them about him, as a father gathers his children, to rejoice in their success—in a word, to make them his joy and his delight”.

His feelings towards the students, and theirs to him, as well as the sentiments with which he unceasingly sought to fill their minds, can well be gathered from the touching words pronounced over his lifeless remains by one of the law students of the university, M. Van Tomme:

“To-day on this solemn occasion, the remembrance of the twenty-fifth anniversary of our university, fills us with sentiments of deep emotion. Surrounded by the multitude of your students whom you loved so much, happy in being one heart and one soul with them, you then said: Ever remember our watch-word: God and our country; this word epitomizes our duties and our principles. Yes; we have taken to ourselves this word as our inheritance. It will be our comfort in this moment of sorrow, as in those days of joy it excited our enthusiasm. Wherever our students are called by duty, this noble thought will always be their motto, as it is to-day their hope.

“GOD, the knowledge of whom you have imparted to us so well, to whom your life of merit, hidden to men’s eyes, is manifest for your recompense.

“And OUR COUNTRY, which in the persons of these numbers of youths whom you have educated for her, and filled with your spirit, will ever bear upon her the impress of the works you have achieved, and veneration for your memory”.

We are told, that in his government of the students, he knew how to follow the *via media* between severity and too great indulgence. He was sometimes blamed for excess in the latter direction; but those who make this accusation seem to forget that he had to do with the direction, not of an ecclesiastical seminary, nor even of a school or college, but of an university, where young men were to be prepared, not for the service of the sanctuary, but for the busy scenes of life, and where opening manhood, freed from the restraints of boyhood, was to be gently led rather than forced, to love the beautiful paths of wisdom on account of their beauty, and to walk steadily in them, because of the goal to which they lead. If he did not hinder everything that is evil, he is not to be blamed; for no legislator can ever aim at this; and we are told by the Incarnate Wisdom Himself, that the cockle must at times be permitted to grow with the wheat, lest in plucking it up, the good grain should be injured. But that his work produced blessed fruits, and that those fruits are likely to remain, is evident to every one who compares the state of religious education among Belgian Catholics when it was founded, with its state at present. He did everything in his power to preserve and strengthen the spirit and practice of religion among the students. He established a regular course of religious instruction, at which all the students of philosophy are obliged to assist, and to which the other students are invited; twice each year he brought the most distinguished preachers to Louvain to deliver religious conferences, which might serve as a preparation for the Paschal communion; he assisted in establishing in the University branches, or conferences of the Society of St. Vincent de Paul, and to the utmost of his power encouraged the Sodality or Congregation of the Blessed Virgin, which was founded by the Jesuit Fathers in the chapel of their residence, and numbers over two hundred members, all lay students of the Catholic University.

What have been the results? At the beginning of this article we saw the deplorable state of educated Catholics in Belgium in 1830, with respect to Catholic feelings and principles. At that time the number of Catholic barristers and physicians who practised their religion was extremely small. Now, in Brussels, Liege, and Ghent, the greater part of the young bar, if not of the whole bar practising in the chief courts of law, which are situated in these three cities, are thoroughly devoted to the Catholic Church. Without doubt, several of these young lawyers did not study in Louvain; they owe the preservation of their faith to the good education received in the bosom of their families, in the Jesuit Colleges, and in other Catholic institutions; but a large number has studied in the Catholic University, and all of them must be greatly confirmed in their religious feelings and principles, and must derive new strength and courage to declare them openly, from the public spirit redolent of Catholicity which proceeds from Louvain. We are told that one of the most interesting features of the great Catholic Congress of Malines in 1863, was the presence of eight hundred students of the University of Louvain, youths as distinguished for learning as for the truly Catholic spirit by which they were animated on that most interesting occasion. We are also told, that in all the great cities, and some of the smaller towns of Belgium, literary societies are springing up, which publicly proclaim the Catholic principles on which they are founded; and that the class in Belgium most devoted to the interests of religion, is precisely the educated Catholic youth of the country. What wonder, then, that the immense influence for good exercised by the University of Louvain, under the presidency of its distinguished rector, should be acknowledged in Belgium by enemies as well as friends, and that on more occasions than one the Holy See itself should have exhorted the bishops of other countries, as well as of Ireland, to imitate their brethren of Belgium by founding a Catholic University like that of Louvain!

While labouring to make the youth of the University good Christians, Mgr. de Ram laboured also with indefatigable zeal to make them learned men and good citizens. FAITH, LEARNING, LIBERTY, were the words which he loved to unite in his discourses. Every one knows the results of his inculcating those principles without ceasing on the young Belgians entrusted to him by his Catholic country, which had just recovered its liberty from Protestant Holland; and the numerous and high distinctions

won by the students of Louvain, in the public examinations to which the whole youth of Belgium is admissible, attest the excellence of the literary and scientific teaching of the University, while the elevated positions now occupied by many of its ancient alumni prove beyond gainsaying, that its educational fruits remain, and will be an abundant source of intellectual, social, and political blessings to Belgium.

Such is the institution which has just lost its first rector, we may say its founder. Such the work which Mgr. de Ram directed with consummate wisdom for thirty-one years. Such the Catholic University of which Belgium, nay Christendom, may well be proud. It is a great lesson to us all to see that even in these days of mere material progress, without faith, without Christian love—when men would fain persuade us that learning, to be a blessing, need not be referred to God or religion—when the apostle’s words: “*Scientia inflat, charitas vero aedificat*”, are held to be not over true. An University founded and governed by a Catholic episcopacy, by the aid of their Catholic people only, established on purely Catholic principles, without any of those helps which men of the world value most, already in its infancy rivals the great seats of learning of the middle ages. And all this is due in a great measure to one man, who at thirty years of age was called by the Belgian Episcopacy to rule over it, and who, with untiring energy, consummate wisdom, and gentle perseverance, moulded every part into perfect symmetry, so that schismatical Russia came to study the model, and the Holy See could say to Ireland, as well as to any other country wishing for a Catholic University: “*Inspice, et fac secundum exemplar*”. With no more fitting words can we conclude this brief notice, than with those spoken by the Vice-Rector of the University at his funeral: “The Catholic University of Louvain was indebted to God and to the bishops of Belgium for her Rector: to her Rector she owes everything else”.<sup>[18]</sup>

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## LITURGICAL QUESTIONS.

A reverend correspondent has taken occasion from our remarks in the last number of the *Record*, to ask a question about the custom prevalent in Ireland of reciting the *De profundis* after mass. We will quote his own words: "In reading the liturgical questions in your last number of the *Record*, it occurred to me to inquire on what authority is founded the practice of reciting the *De profundis* after mass, whether it can be omitted *ad libitum*, *secluso scandalo*, and whether it should be said at the altar, or when the priest descends, or when going into the sacristy". The practice of reciting the *De Profundis* after each low mass, we believe, exists in all Ireland, without any exception of diocese or district, and has existed for a long period. It is the opinion of many well versed in Irish ecclesiastical matters, that it was introduced and authorised by the Holy See as a substitute for the numerous masses and suffrages for which innumerable endowments were founded by the piety of the faithful in former times, and which were taken away from the Catholic Church at the time of the Reformation. It is more than probable that a rescript from the Holy See authorised this practice, in order that the pious intentions of the founders of such endowments might not altogether be frustrated by the rapacity of the reformers. It is difficult to understand how, under other circumstances, the practice could have become so universal in Ireland. Indeed we have heard it remarked, that possibly a rescript of an old date bearing on this subject might be found; and if any of our readers could aid us in getting authentic documents on the matter, we need scarcely say how anxious we would be to insert them or any information connected with this subject in the *Record*. While writing these lines we have been informed that in the Irish College, Paris, there is a rescript authorising the recital of the *De profundis* after the community mass in the college.

Apart, however, from this consideration we may reply that the recital of the *De profundis* cannot be omitted *ad libitum*. Whatever may have been its origin, it has become a usage with the force of law, against which no

individual is at liberty to act. Even if the Holy See did not authorise the practice in the commencement, it must necessarily have been introduced by the bishops of the day, and its continuance for so long a period throughout the entire Irish Church without any reclamation from ecclesiastical authority, would be quite sufficient to show that all should conform to such a practice, which in itself is so holy and useful, and calculated to confer such advantages on the suffering souls in Purgatory.

We are therefore clearly of opinion that no priest can on principle omit the *De profundis*, and we would take the liberty of reminding him of the munificent endowments established in former ages of the Irish Church for the exclusive object of having Requiem Masses said, and securing the suffrages of the faithful in aid of the suffering souls in Purgatory. We would refer our readers, for information on this point, to Dr. Lanigan's *Ecclesiastical History of Ireland*, vol. iii. chap. 21.

With regard to the proper time for saying the *De profundis*, we think that the practice of saying it at the foot of the altar is the most correct. We know this to be the course adopted by many priests, who descend from the altar, make a genuflexion or a reverence to the altar, and then standing recite the *De profundis*. By this plan it is made manifest that the *De profundis* is a thing quite distinct from the Mass, and not appertaining to it. However, it is right to say that nothing decisive can be laid down as to the place and time of reciting it. There is a decree of the Sacred Congregation of Rites given by Merati in his *Series Decretorum*, p. 436, which is as follows:

“Quando adest legatum quod sacerdos antequam discedat ab altari, recitet aliquod Evangelium, Psalmum, seu orationem post terminatam missam, debet oneri sibi injuncto satisfacere post finem missae exutis vestibus sacerdotalibus et cum sola cotta in altari vel in sacristia et sic legatum adimplere S. R. C., 31 Augusti, 1669, in Conversanen”.

These words would appear to imply that in our case the sacred vestments should be taken off. However, on referring to the decree itself in Gardellini, we find its terms are not so comprehensive as the interpretation of Merati would make them. The following are the words:

“2339. Conversan. Capitulum Collegiatae Rosigliani Dioecesis Conversanensis exposuit in S. R. C. Nicolaum *Franciscium in ejus sub quo decessit testamento*, reliquisse ejus bona dicto capitulo cum onere celebrandi Missam quotidianam et singulis diebus veneris de Passione et cum onere, terminata missa post Evangelium in principio erat verbum, etc., recitandi ipsam Passionem secundum Johannem. Et proinde cum dicta dispositio sit contra Ritus Ecclesiasticos supplicavit pro declaratione. An dicta passio recitanda sit post dictum Evangelium alibi per celebrantem?

“Et S. eadem C. censuit: Recitandam esse post finem missae exutis vestibus sacerdotalibus et cum sola cotta in altari vel in sacristia. Hac die 31 Augusti, 1669”.

The words of this decree do not refer to a psalm or prayer, but simply to the passion of St. John, and hence, as far as our question is concerned, no conclusion can be clearly established except by analogy, and by whatever weight may attach to the authority of Merati, who manifestly thus extends the meaning of the decree. After writing these lines, we have learned from a distinguished ecclesiastic, that there exists a Rescript of the Holy See about the recital of the *De profundis* in Ireland after Mass. He has kindly promised to procure it for a future number of the *Record*, when we shall gladly insert it.

The same reverend correspondent calls our attention to another matter which indeed is of very great importance, and on which we shall make a few remarks. Our correspondent says, that the altar bread used in this country is of a very inferior kind, and not elegant, and that it leaves on the corporal many fragments. If this be the case in some parts of the country, it is unnecessary to say that it is a matter of such importance that immediate attention should be called to it by the parish priests or the superiors of the different churches. As far as we are aware, we have no grounds for complaint on this head, as generally speaking the breads are made in this city with care and neatness and very few fragments fall from them. It is quite possible, however, that in some districts sufficient care may not be bestowed on this matter, and the breads may not be made with that care which the majesty of the great Sacrifice demands. We have heard from persons competent to give an opinion on the subject, that in some districts

abuses have crept in; for instance, when the superior of a church, personally responsible for the due observance of the rubrics concerning the Holy Sacrifice, leaves to a servant the making and cutting of the breads for the use of the altar. In such cases there is great danger that through carelessness or negligence they will not be properly made. The cutters or the machines for making them in the course of time will become impaired and quite unfit for their purpose, and a mere servant may not try to remedy the evil. For this reason, we would strongly recommend all concerned to engage some community of nuns or others well versed in such matters, and who at the same time fully understand the importance of what they are engaged in, to make the altar breads. We have ourselves examined the altar breads made by various communities, and seldom had we any reason to find fault, except in some instances when the large altar breads appeared to us to be too thick.

This suggestion, we think, will meet our reverend correspondent's question as to the improvements that may be made in connection with this matter.

He then proceeds: "It may be observed here that the cutters too are of no regular size. They are generally over small. I have seen breads no larger than a sixpence intended for communicating the faithful. In the distribution of such very small particles there is evidently danger of irreverence". No one can question the truth of what our correspondent states; but we must say that we have generally found the breads sufficiently large when made by the convents or others duly charged with so important a matter, and we may also remark that the cutters will not be made too small if there be no demand for them on the part of the clergy. The small breads ought to be considerably larger than a shilling and very little under a two-shilling piece.

We are much obliged to our reverend correspondent for calling our attention to this matter, and we hope the observations which we have taken the liberty of making, will have the effect of correcting any abuses that may exist, and inducing all persons concerned to provide themselves with cutters of a proper size, or what would be still better, to secure the services of a religious community, or of others duly authorized to prepare the breads for the use of the altar.

We shall close these observations by giving some extracts on the present subject, from a very useful book published at Louvain, by Rev. P. J. F. De Herdt, entitled *Sacrae Liturgiae Praxis*, which is very highly esteemed.

I. Qualis debet esse Hostia, ut valide et licite sit consecrabilis?

R. Ut valide consecratur, debet esse confecta ex tritico cum aqua, saltem in majori quantitate, et esse non corrupta: ut licite consecratur, debet esse 1° sine admixtione aliorum granorum et liquorum praeter triticum et aquam naturalem; 2° panis azymus; 3° recenter confecta (*Vide p. 2. n. 30. ad. III.*); 4° rotunda, integra et non fracta; 5° candida et non maculata; 6° tenuis; 7° ordinariae magnitudinis; 8° cum imagine Crucifixi, quam ei impressam esse convenit: in eo tamen servandam esse consuetudinem respondit. S. R. C. 26. Ap. 1834. n. 4574. *Vid. Quarti quae St. proaem. s. 5. puncto 4. dub. 3.* Hinc hi duo versus.

Candida, triticea, ac tenuis, non magna, rotunda.

Expers fermenti, non falsa, sit hostia Christi.

II. Quoad confectionem Hostiarum notanda sunt sequentia: “Conveniret a Sacerdotibus, Clericis aut Religiosis hostias in Missa usurpandas confici, ut omni errori, praesertim admixtionis liquoris vel grani alterius obviaretur, et cum majori nitore et reverentia tractarentur: passim enim venales satis incurie tractantur et sordide, quod est indecens in materia tanti tamque puri Sacrificii.... Ut autem hostiae purissime sine ulla admixtione, nec non honestissime fiant; haec erunt singulariter observanda: imprimis triticum, si fieri potest, magno studio granatim eligatur; electum in sacculo mundo et de bono panno ad hoc opus tantum facto ponatur, atque a famulo boni studii ad molendinum deferatur. Quo delato, famulus aliud frumentum in ipso molendino moli prius faciat, ut illud, unde hostiae fieri debent, sine aliqua sorde moli postea valeat. Reportata farina, Clerici antequam incipiant, manus lavent, ipsamque cribrent. Deinde unus super tabulam mundissimam ipsam farinam aqua conspergat, et manibus fortiter compingat, atque maceret. Postea in ferrum, in quo coquuntur, ponat et coquat, advertens ut imago sacra Crucifixi, et non alia tam majoribus, quam minoribus sit impressa.

Nec non ut nitide et studiose fiant, eas forcipibus ad id tantum paratis, vel alio simili instrumento tondeat”. *Vinitor p. 3. tit. 3. annot. 11.*

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# DOCUMENTS.

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## I.

### DUBIA CIRCA MISSARUM ITERATIONEM, APPLICATIONEM MISSAE PRO POPULO, ET RECEPTIONEM ELEEMOSYNAE.

*Ex S. Congregatione Concilii Tridentini Interpretum.*

VISITATIONIS SS. LIMINUM. <sup>[19]</sup>

*Compendium Facti.*—Episcopus A in relatione status suae Dioecesis ad S. Sedem transmissa, haec exposuit: “Ducentae circiter Paroeciae, in hac Dioecesi extant, quae aliam filialem sibi adnexam habent, in qua Parochus diebus dominicis et festis per annum, secundam Missam celebrat: et circa hanc consuetudinem, diversa dubia, suboriuntur super quibus declarationem necessariam a S. Congregatione humiliter expostulo. Et primum animadvertere debeo, quod fidelium numerus iuxta has ecclesias commorantium, valde varius est: in aliquibus sunt quinque vel decem, in aliis ducenti, imo et sexcenti. Distantia a matrice, modo ad milliarium non attingit, modo sunt duo, tria, aut quatuor milliaria. Valde difficile foret etiam post exquisitam investigationem definire utrum hae ecclesiae nunc filiales, fuerint aliquando ecclesiae matrices, seu verae paroeciae”. Quatuor proinde dubia proponebat S. Concilii Congregationi, quae antequam solverentur, rogatus est Episcopus, ut magis praecise referret de omnimoda deficientia Sacerdotum, ac mediorum quibus per alium celebrari posset in filialibus ecclesiis; et utrum ecclesiae modo filiales nuncupatae, dotem aliquam seu congruam, distinctam a matrice haberent, perquisitis actis Curiae, ac SS. Visitationum. At, quae relata sunt, sufficientia non erant ad integram quaestionem singillatim definiendam, quae ingentem paroeciarum numerum complectebatur. Relatum enim est de magna et generica presbiterorum deficientia, eorumque redituum paupertate, qui dum prius ex decimis alebantur; deinde, his subtractis, assignata est pro quolibet parocho,

certa pensio, independenter omnino a populorum numero, vel parochiarum quas quilibet regit. Concinnata itaque hac ratione fuerunt proposita ab Episcopo dubia.

I. “Utrum haec consuetudo secundam Missam celebrandi, toleranda sit in omnibus praedictis ecclesiis adnexis, ubi hic mos ita invaluit, ut populus etiam ius ad illam exigendam existimet se habere”.

II. “Utrum Parochus necessario debeat illam secundam Missam applicare pro Populo sicuti primam, vel liberam retineat illius applicationem cum stipendio”.

III. “Utrum licentiam dare queat Episcopus ad illam secundam Missam celebrandam in casibus similibus, et in locis ubi talis consuetudo usque adhuc non invaluit”.

IV. “Utrum praesertim praedictam licentiam concedere possit tempore collectionis messium, cum plurimi operarii in uno praedio seu villa concurrant, qui certe missam non audirent, nisi Parochus secundam in eo loco diceret, ex eo quod alius Sacerdos ad illam dicendam haberi non possit”.

#### DISCEPTATIO SYNOPTICA.

*Quoad missae iterationem.*—Ex officio, haec praecipua capita iuris proponebantur S. Congregationi. Praemissa nempe notione historica disciplinae quae successive hanc missarum iterationem moderata est, allegabatur caput 3 *de celebrat. missar.* in quo ita sanxit Innocentius III. “Excepto die Nativitatis Dominicae nisi causa necessitatis suadeat, sufficit Sacerdoti semel in die unam Missam solummodo celebrare”. Ubi verbum sufficit, non convenientiam aliquam commendat, sed veram praeceptum continet, ceu etiam docuit Benedict. XIV. in *Const. Declarasti nobis*. Quatenus porro debeat esse necessitas ab Innocentio indicata, licet disputaverint de ea Doctores, hodie, praesertim post hanc Benedicti XIV. Constitutionem, illa est (subiungebatur) qua reperitur presbiter qui duas habeat paroecias, et in alterutram nequeat Populus convenire, nec alius habeatur presbiter praeter Parochum, qui missam possit celebrare. Et similis reputatur etiam casus quo Parochus etsi non praesit duabus paroeciis, tamen



vel duos regat inter se dissitos populos, quorum unus ob magnam locorum distantiam, assistere non possit Parocho celebranti, vel etiam si una sit Ecclesia, quae universum Populum simul capere non possit. Extra huiusmodi necessitatis casus, neque consuetudo, etsi vetustissima suffragari potest Missarum iterationi, ut S. C. C. in *Dertusen 20 Augusti 1768*, et alibi censuit. Adnotabatur vero *in facto* quod licet haberetur generica presbiterorum deficientia, tamen ex ea argui non poterat vera necessitas in qualibet paroecia.

Caeterum observabatur, distantiam Ecclesiarum quae filiales nuncupabantur, a Parochiali Ecclesia, ab uno circiter lapide, usque ad tria et quatuor passuum millia protendi: et fideles in multis Ecclesiis usque ad biscentum et sexcentum ascendere, quamvis in nonnullis, non nisi quinque vel decem tantum, reperiantur. Ob quas peculiares circumstantias, exponebatur responsio S. C. in casu non absimili, proposito per *Summaria precum die 12 Ianuarii 1847 in Lingonen*. In eo enim pariter agebatur I. de consuetudine qua nonnulli animarum Pastores, Missam iterabant eodem die; et aderat II. quaedam Communitas, uno circiter lapide, a Parochiali Ecclesia separata, constans viginti circiter personis. Et S. C. respondit: “Scribatur Episcopo ut concedat bis Missam celebrandi licentiam, quatenus eae circumstantiae, et praecisae necessitatis casus concurrant, quos Benedict. XIV. in sua Const. *Declarasti nobis* requirit; in casu vero quem idem orator proponit, (seu in secundo casu) licentiam esse concedendam”.

*Quando applicanda non est secunda missa pro populo.*—Quod attinet vero ad applicationem secundae Missae pro populo, afferebatur Resolutio S. C. C. in *Lucen. applicationis Missarum 12 Martii 1774* in qua proposito dubio: “An Parochi duabus Ecclesiis parochialibus praepositi, teneantur Dominicis, aliisque Festis diebus, Missam in unaquaque Ecclesia sive per se sive per alios applicare pro populo in casu” responsum prodiit: *Affirmative, exceptis tantum parochiis unitis, unione plenaria et extinctiva, et scribatur Episcopo iuxta instructionem*. Instructio vero continebat: S. Congregationem nunquam dubitasse, quod Parochi teneantur applicationi supradictae Missae pro populo singulis diebus Dominicis, et Festis in unaquaque ex Ecclesiis Parochialibus quae vel aequè principaliter, vel subiective coniunctae sunt, atque incorporatae; cum applicatio unius tantummodo Missae pro populo, locum habeat in iis parochialibus quae

*invicem adeo unitae et coniunctae atque incorporatae sunt, ut ex duabus una prorsus cum extinctione tituli alterius evaserit.*

In praesenti autem facto quamvis ex deductis non poterat certo determinari natura unionis, animadvertebatur tamen, non deesse indicia quae videbantur excludere plenariam et extinctivam unionem.

Caeterum, subinagebatur, si Parochi iterare Missam deberent, non ratione duplicis Paroeciae, sed solummodo ratione necessitatis, quamvis secundam Missam ad libitum applicare possent, nullam tamen pro hac celebratione recipere possunt eleemosynam; quod dici etiam debet de quolibet Sacerdote qui nullam habeat animarum curam, ceu omissis ceteris, definitum fuit in *Cameracen. Missae pro Populo 25 Septemb. 1858*, cuius resoluta dubia videbis inferius.

*Resolutio Dubiorum.*—Sacra Congregatio Concilii die 22 Februarii 1862 respondere censuit: ad I. et III. *affirmative iudicio Episcopi, nulla habita ratione consuetudinis, et quatenus in unoquoque casu concurrant circumstantiae necessitatis ad formam Constitutionis Benedectinae et Declarationis sacrae Congregationis diei 14 Octobris 1843 relatae in Cameracen. Missae pro Populo 25 Septembris 1858.*

*Ad II. dentur resolutiones in Cameracen. diei 25 Sept. 1858.*

*Ad IV. provisum in praecedentibus.*

Haec porro est indicata declaratio, ipsis verbis quibus in citata *Cameracen.* reperitur. “De adiunctis Amplitudinis tuae precibus cum ad SSmum. Dominum Nostrum relatum fuerit placuit eidem Sanctitati Suae, eadem et tibi dare responsa quae ad alios quoque Antistites, per hanc Sacram Congregationem Concilii transmissa sunt. Ordinariorum scilicet esse de re cognoscere et perpendere, num revera necessitas urgeat ut Sacerdos duas Missas celebrare cogatur, nec aliter utendum concessa hac iteratione, quam iuxta conditiones ab ipsis apponendas, habita locorum, populorum, et paucitatis Sacerdotum, ac proinde verae necessitatis ratione de qua legatur Benedicti XIV. Constitutio *Declarasti ... ad Episcopum Oscensem anni 1746*, et in eius apere *De sacrificio Missae lib. 3 cap. 5, et 6*. Ipsorum vero conscientia oneratur stricte, nec permissio concedatur generaliter, quasi privilegium alicui Sacerdoti; sed ob peculiare casus, et

necessitatis causa, ab ipso examinata, qui praeterea moneat Parochos quibus facultatem iterum, eadem die, secundam Missam celebrandi concesserit, ne eleemosynam vel stipendium a quovis et sub quocumque pretextu, pro ea percipiant, iuxta decreta alias edita a S. Congregatione, sed eam pro populo sibi commissio gratis applicent”.

Resolutiones vero quae in *Cameracen.* reperiuntur quibus S. C. C. censuit ad secundum propositum superius dubium respondere, sunt sequentes. Cum in *Cameracen.* quaereretur. I. “An Parochus qui duas Parochias regit et ideo bis in die celebrat, utrique Parochiae suam missam applicare teneatur non obstante reddituum exiguitate”.

II. “An Parochus, qui in una eademque Parochia, bis eadem die celebrat, utramque Missam populo sibi commissio, gratis applicare omnino teneatur”.

III. “An Vicarii aut alii Sacerdotes curam animarum non habentes, si quando, bis in die celebrant ut fit quandoque, seu ut numero sufficienti, Missae in Ecclesia Parochiali celebrentur, seu ut Hospitalia, Carceres, sanctimonialium Conventus, Missa non careant, secundum et ipsi Missam pro populo gratis applicare teneantur”.

“Et quatenus affirmative ad I. II. et III.”.

IV. “An et quomodo concedendum sit Parochis, qui diebus dominicis aliisque festis bis celebrant, ut unius Missae liberam habeant applicationem, et stipendium pro ea recipere valeant in casu”.

V. “An et quomodo concedendum sit Sacerdotibus curam animarum non habentibus, quoad utramque Missam in casu”.

Sacra Congregatio Concilii die praedicta respondit: Ad I. *Affirmative.* Ad II. *Negative firma prohibitione recipiendi eleemosynam pro secunda Missa.* Ad III. *Negative quatenus curam animarum non habeant, firma semper prohibitione recipiendi eleemosynam pro secunda Missa.* Ad IV. *Negative, et Episcopus provideat ad formam Constitutionis Benedicti XIV.* “Cum semper oblatas §. 8”. Ad V. *provisum in tertio.*

EX QUIBUS OMNIBUS BREVITER COLLIGES:

I. Extra verae necessitatis casus, Missam iterare non licere.<sup>[20]</sup>

II. Huius necessitatis existentiam agnoscendam esse ab Episcopo singulis in casibus, prae oculis habito criterio seu norma, quam tradit Benedictus XIV. in Constit. *Declarasti*, et in eius opere de Sacrificio Missae lib. 3. cc. 5 et 6.<sup>[21]</sup>

III. Qua necessitate cognita Episcopum permittere debere hanc Missae iterationem, non quidem generaliter et ad instar privilegii, sed secundum cognitam necessitatem, appositis etiam conditionibus opportunis, a Sacerdotibus omnino servandis.

IV. Neque allegari posse consuetudinem, quamvis immemoriam, veluti titulum ad Missam legitime iterandam quae consuetudo ex se sola, dicenda est potius corruptela.

V. Colliges insuper, nunquam recipi posse eleemosynam pro secunda Missa celebranda, quicumque sit qui eam celebret, neque ad hanc eleemosynam recipiendam, allegari posse titulum egestatis, seu defectus reddituum.<sup>[22]</sup>

VI. Imo Parochum teneri secundam *Pro populo*, sicut primam, gratis, diebus festis applicare, in parochiis unitis, excepto casu in quo Parochiarum unio talis sit, ex qua unica prorsus parochia exurgat.

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II.

LETTER FROM PROF. UBAGHS TO THE CARDINAL ARCHBISHOP  
OF MALINES.

EMINENCE RÉVÉRENDISSIME,

Je viens avant tout confirmer par écrit la déclaration, que j'ai eu l'honneur de vous faire oralement, de ma soumission entière et absolue aux décrets de la S. Congrégation de l'Index<sup>[23]</sup> de 1843 et 1844 et à celui de Leurs Eminences les Cardinaux de l'Index et du Saint-Office, réunis le 21 septembre 1864, avec la promesse formelle de me conformer exactement à ces trois décrets.

Ensuite, sans vouloir restreindre ou affaiblir en rien cette soumission complète, j'ai l'honneur de transmettre à Votre Eminence les explications que j'ai demandé de pouvoir Lui présenter, afin de justifier ma bonne foi et de montrer que, si pendant vingt ans je n'ai pas satisfait aux décrets de la S. Congregation de l'Index, ce n'est point par manque de respect et de soumission aux jugements des Congrégations romaines, mais uniquement parce que, jusqu'au moment où le décret du 21 Septembre 1864 m'a été notifié, je croyais très-sincèrement m'y être conformé.

Je déclare tout d'abord et d'une manière bien nette qu'en cela je me suis trompé; les deux Congrégations réunies ayant décidé que je n'avais pas satisfait, il ne saurait plus y avoir de doute à cet égard; aussi n'y en a-t-il aucun dans ma propre pensée ni dans ma conviction intime. Mes explications ont donc pour but unique de montrer que pendant vingt ans j'ai été dans une erreur absolument involontaire, et que jamais je n'ai éprouvé la moindre hésitation dans mes sentiments de respectueuse et entière soumission aux ordres, aux conseils et aux désirs du Saint-Siège, soumission que je considère comme le premier devoir de tout catholique.

Pour qu'on puisse juger de ma bonne foi, Votre Eminence me permettra de rappeler quelques faits et de citer quelques documents.

Au mois de Septembre 1843, mon ami, M. le comte Van der Vrecken, qui pendant l'été avait fait un voyage à Rome, m'apprit, dans une

conversation particulière, que mes ouvrages étaient déferés à la S. Congrégation de l'Index. Craignant que mes principes n'eussent été mal exposés, je fis des démarches pour obtenir que les chefs d'accusation me fussent communiqués et qu'ainsi je pusse fournir des explications. Deux mois plus tard, je reçus de la part du secrétaire d'Etat, S. Em. le cardinal Lambruschini, par l'intermédiaire de Son Excellence le Nonce apostolique et Votre Eminence Révérendissime, les cinq propositions contenues dans le décret du 23 juin 1843.

La pièce qui me fut communiquée ne renfermait point les mots: "Observationes S. Indicis Congregationis diei 23 junii 1843. Rev. D. Ubaghs in sua Theodicea, et interdum etiam in Logica, subsequentes propositiones docet, quas S. Congregatio Indici praeposita emendandas esse judicat". Elle ne contenait pas non plus les mots suivants: "Hae sunt praecipuae sententiae quae in praedicto libro corrigendae videntur. Monet igitur S. Congregatio Rev. Auctorem, ut nova aliqua editione librum suum emendandum curet, atque interim in scholasticis suis lectionibus ab iis sententiis dicendis abstinere velit". La pièce qui me fut remise porte simplement: "Docet auctor in Theodicea et interdum etiam in Logica seqq. propositiones", avec les cinq propositions.

En recevant cette communication, j'ai compris que je devais fournir des explications et des éclaircissements au sujet de ces cinq propositions. Je croyais que la S. Congrégation de l'Index, ayant égard à ma position de professeur à l'Université catholique de Louvain, avait daigné m'appliquer le § 10 de la constitution de Benoit XIV, *Sollicita ac provida*, et n'avait pas voulu porter de jugement définitif avant de m'avoir entendu. C'est dans cette persuasion que je m'empressai de rédiger un *Mémoire explicatif et justificatif*, que votre Eminence a bien voulu transmettre à Rome. Un tel *mémoire*, en présence d'un jugement que j'aurais considéré comme définitif, aurait été de ma part un manque de respect. Ce n'est pas ainsi que la S. Congrégation l'a apprécié. Elle a daigné accueillir mes explications avec bienveillance comme en témoigne une lettre de Monseigneur Pecci, Nonce apostolique à Bruxelles: cette lettre accompagnait la communication du décret de 1844, et celle me fut transmise par Votre Eminence. En voici la teneur:

"Bruxelles, Nonciature Apostolique, N° 227.

“ÉMINENCE RÉVÉRENDISSIME,

“J’ai reçu de Rome la réponse qu’on attendait avec impatience en égard de l’ouvrage du professeur Ubaghs.—Quoique les explications que celui-ci avait remises aient été hautement appréciées, on a cru néanmoins qu’il serait prudent et nécessaire d’introduire dans la nouvelle réimpression les corrections qui sont marquées dans la feuille qui m’a été envoyée par le Secrétaire d’Etat, et que j’ai l’honneur de remettre ci-jointe à Son Eminence Votre Révérendissime, afin qu’elle daigne de la faire parvenir au susdit Professeur avec injonction de vouloir bien dans sa nouvelle publication se conformer aux désirs qui par la S. Congrégation ont été manifestés, de manière qu’elle soit réglée par les principes de sa religion et de sa probité, surtout quand il doit parler de ce qui est très-essentiel, c’est-à-dire de l’existence de Dieu.

“En portant à la connaissance de S. E. Votre R<sup>me</sup> le résultat de cette affaire, je suis chargé de la part de S. Eminence le Secrétaire d’Etat de déclarer que ç’a été précisément en égard de l’empressement et des recommandations très-respectables de V. Eminence qu’on a tâché que le jugement attendu fut au plutôt prononcé pour en donner ensuite sans retardement la communication nécessaire.

“En m’acquittant ainsi des ordres qui m’ont été donnés, j’ai l’honneur, etc., etc.

“Bruxelles, 23 septembre 1844.

“(Signe) ✠ J. Archevêque de Damiette, Nonce Apostolique.

Dès que j’eus reçu le décret de 1844, que cette lettre accompagnait, je me hâtai de préparer une nouvelle édition de la Logique et de la Théodicée, en y introduisant les corrections que j’estimais nécessaires pour répondre aux désirs de la S. Congrégation de l’Index.

Ces corrections n’ont pas été suffisantes. C’est un point qui est aujourd’hui définitivement jugé. Mais jusqu’au moment où j’ai eu connaissance du décret du 21 septembre 1864, j’ai cru très-sincèrement

qu'elles l'étaient. Je prie Votre Eminence de me permettre d'entrer ici dans quelques détails.

Les faits que j'ai rappelés établissent comment j'ai été amené à considérer le décret de 1844 comme étant le seul décret définitif rendu à mon égard. Quant à ce décret, il renferme, entre autres, les expressions suivantes: "Pauca quaedam loca in opere quod a cl. viro G. C. Ubaghs anno 1844 Lovanii editum est et inscribitur *Theodiceae seu Theologiae naturalis elementa* adnotanda esse videntur, ut doctissimus auctor, additis quibusdam illustrationibus, obortas circa eiusdem operis intelligentiam difficultates e medio tollere possit.....—"In his omnibus mens doctissimi auctoris paulo clarius explicanda videtur, ne quis inde occasionem sumat vim elevandi argumentorum quae Dei existentiam demonstrant.....—Plura alia eiusdem generis ibi obvia sunt quae contra mentem auctoris forte in alienos sensus torqueri possent".—Ces termes me firent supposer que la S. Congrégation n'avait pas voulu me signaler des erreurs de doctrine à corriger, ni des principes faux à abandonner, mais qu'elle me demandait seulement des éclaircissements et des explications propres à faire mieux comprendre ma pensée. C'est là ce qui explique le langage que j'ai tenu dans la préface de ma Logique en 1844 et dans une lettre récente à Son Eminence le Cardinal Altieri, Préf. de la S. Congrégation de l'Index.

En 1845 je remis à Monseigneur Pecci, Nonce Apostolique, deux exemplaires de la nouvelle édition de la Logique et de la Théodicée, en priant Son Excellence de vouloir bien les faire parvenir à Rome, afin que la S. Congrégation pût juger si les additions et les changements introduits répondaient entièrement aux vœux exprimés par elle. A plusieurs reprises je reçus des assurances qui me persuadèrent que j'avais fait ce qui m'était demandé. Les documents dont je veux parler n'ayant pas été approuvés par la S. Congrégation ni surtout par le Souverain-Pontife, ils n'ont de valeur que pour justifier ma bonne foi; aussi c'est à ce titre seul que je les invoque. Parmi ces documents qu'il me soit permis de transcrire ici la lettre que m'adressa, en 1846, le T. R. P. Degola, secrétaire de la Congrégation de l'Index. La voici:

REVERENDE DOMINE,



Quamquam scio id Tibi ab aliis iam nuntiatum, quod ego his litteris dicturus sum, attamen ut postulationi tuae, nec non Em. Card. praefecti mandato morem geram, libenter significo, declarationes illas atque varietates, quas monente S. Congregatione in novissima tuorum operum *Logicae* ac *Theodiceae* editione fideliter abundanterque effecisti, voto ac sententiae eiusdem S. Congregationis prorsus respondisse. Quam ob rem docilitati tuae, prout par est, gratulor, et ut de sacris humanisque doctrinis, pro tuo excellenti ingenio et religioni, bene mereri pergas, plurimum opto. Vale.

Romae kal. Septembris 1846.

Humill. devotis. servus  
FR. TH. ANTONINUS DEGOLA, O. P.  
S. C. I. Secret.

Finalement, je le déclare de nouveau, j'aurai le plus grand soin de me conformer scrupuleusement aux décrets émanés du Saint-Siège, et je m'empresserai de corriger, le plus tôt possible, mes ouvrages selon les prescriptions de ces décrets.

J'ai la confiance, Eminence Révérendissime, que les explications dans lesquelles je viens d'entrer suffiront pour montrer que je n'ai jamais varié dans mes sentiments de soumission absolue aux décrets du Siège apostolique, l'oracle de la vérité.

Comme Votre Eminence a été chargée de me communiquer les susdits décrets, je serais heureux qu'Elle daignât aussi me servir d'intermédiaire pour faire parvenir aux pieds du Vicaire de Jésus-Christ l'expression de ma soumission la plus respectueuse et la plus complète.

Veuillez agréer, Monseigneur, l'hommage des sentiments de profond respect avec lesquels j'ai l'honneur d'être.

Louvain, le 14 November, 1864.

De Votre Eminence  
le très-humble et très-obéissant serviteur,  
(Signé) G. C. UBAGHS.



## NOTICES OF BOOKS.

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### I.

*Acta ex iis decerpta quae apud Sanctam Sedem geruntur, in compendium opportune redacta et illustrata.* Romae: Typis Polyglottae officinae S. C. De Propaganda Fide, Eq. Petro Marietti, ejusdem S. C. Socio administro edente, 1865. 8vo. pagg. 26.

A brilliant writer has left a well-known sketch of the life and bustle of the Appian Way in the days when pagan Rome was ruler of the world. That great highway—leading from the capital to the Eastern provinces—was ever thronged by a ceaseless crowd of men, engaged in the varied business, and swayed by the various interests, that centre in the seat of a mighty government. Through the chair of St. Peter, Christian Rome has been made the seat of an empire surpassing that of pagan Rome, by as much as the power of religion surpasses that of the sword. Each line of the network of railways and telegraphs with which modern progress has girded the globe, is in itself a new Appian Way, by which some distant country communicate, on its spiritual concerns with Rome; and there is this difference between the pagan and the Christian governors, that, whereas the acts of the former were of but passing interest, those of the latter are laws forever; and while the former concerned only individual powers or states, the latter become directing principles for the entire Christian world. The acts of the several congregations which assist the Holy Father in the ecclesiastical government of the world, are of great importance to the Church, and a knowledge of these acts must be of the utmost value to those who govern dioceses or parishes. Hence, all will hail with pleasure the appearance of the first number of the monthly periodical we have now before us. The title declares that it is not intended to publish in it a full report of all the ecclesiastical business transacted at Rome. A very large share of that business, of its very nature, demands secrecy from its close connection with matters of

conscience; many other cases are of no interest except to the parties immediately concerned; but, after these exceptions, there still remains an ample supply of decisions which throw light upon the practice of the Church in many things, and show how the laws of the Church are applied to novel cases that occur as time goes on and events progress. The *Irish Ecclesiastical Record* has aimed at keeping its readers acquainted with new decisions of this kind. The work before us proposes to effect this for all, and to effect it fully and completely. It will do even more than this. Besides a brief, yet clear statement of the facts of each case, it will furnish the heads of the arguments adduced *pro and contra* before the Congregation, either *ex officio* by the secretary of the Congregation, or by the advocates engaged upon the case; and finally, it will give the authentic decision of the Congregation. Besides, it will draw attention to such theoretical or practical principles as may be of use in dealing with similar cases whenever they may occur, and in explanation of difficult points will add such remarks as may be necessary. Such documents as have been directly published by the Holy See will be given in full whenever they regard Canon Law; in those not directly published by the Holy See, the names of persons and places will be thoroughly suppressed or altered, and the substance of the fact only will be given in the way in which moral cases are usually proposed.

The contents of the first number are as follows. After the preface there is a full discussion of the important practical question touching *missarum iterationem, applicationem missae pro populo, et receptionem eleemosynae*. This discussion, with the decision of the Congregation, etc., we have given above.

Next follows: *Circa nullitatem matrimonii ratione, raptus*.

Next follows: *Juris funerandi et restitutionis emolumentorum seu causa orta, occasione publici coemeterii noviter erecti*.

Next comes an appendix, *quod jus funerandi* (pag. 24).

We shall have frequent occasion for the future to recur to this valuable collection.

*Grammar of Gregorian and Modern Music.* Originally compiled by the Very Rev. L. F. Renahan, D.D., late President of Saint Patrick's College, Maynooth. New and enlarged edition, containing numerous exercises, the Gregorian Chants for High Mass and the Divine Office; Litanies of the Blessed Virgin, instructions regarding the use of the organ, etc. By the Rev. Richard Hackett, Professor, Saint Patrick's College, Maynooth. Dublin: James Duffy. 1865, xxiv.—297. 12mo

This useful book is divided into five parts. The first part (p. 1-68) is a reprint of the *Choir Manual* published by the late Dr. Renahan for the use of the students of Saint Patrick's College, Maynooth, and republished with additions in 1858 by the accomplished editor, or rather author, of the work under notice. This part contains a complete explanation of the theory and notation of Gregorian music, with some elementary instructions in modern Italian music. The remaining four parts and appendix (p. 69-297) we owe to the Rev. R. Hackett himself. The purpose of his labour has been to supply ecclesiastical students in this country with a complete manual of the principal chants which are sung at High Mass, Solemn Vespers, Benediction, Mass and Office for the Dead, etc. With this view he has collected into the second part an abundant supply of exercises on the intervals ordinarily in use in Gregorian music, together with a selection of easy chants in which these intervals occur. Part the third contains the principal chants of the office for the dead, of the Mass for the dead, and instructions on the method of chanting prayers. It is greatly to be regretted that there should exist a difference between the Roman method of chanting prayers and that in use in some dioceses in Ireland. We hope that, as far as Ireland is concerned, by help of the judicious selection of Roman chants given in this work, we may soon be able to say with Guidetti (quoted by our author at page 134), though in another sense, *semper et ubique sic cantatur*. The present want of uniformity, appears still more unseemly when we learn (p. 158) that the epistle and gospel of the Mass for the dead are often chanted according to the Roman method in many dioceses in which the Irish intonation is used on other occasions. Part the fourth contains chants for High Mass. Part the fifth sets forth the chants for vespers, chants for Holy Week, including those used at the blessing of the oils on Holy Thursday, and miscellaneous chants. A great deal of most useful information is condensed in the five short appendixes which complete the

work, respectively headed: directions for the choir and organist at High Mass—use of the organ at solemn vespers—playing of the organ at Mass and the Divine Office, when prohibited—directions for chanting the Divine Office—Office for the Dead—Gregorian and modern music—character of sacred music—instrumental accompaniments and symphonies—vernacular chants. In drawing up these instructions, the author has had recourse to the safest guides. His counsels are in exact accordance with the *Caeremoniale Episcoporum*, the Constitution *Annus qui nunc* of Benedict XIV., the decrees of the Sacred Congregation of Rites, and the teaching of approved writers. The *Grammar* has one other merit to which we wish to draw attention. Scattered here and there throughout the work, wherever the subject requires or permits, we find passages from the Milanese Councils of St. Charles Borromeo, or from the works of Cardinal Wiseman, or from other sources, which serve to inspire youthful ecclesiastics with a true estimate of the majesty of the Liturgy, and to draw their attention to those treasures of tender grace which it contains. It is pious and wise thus to remind ecclesiastics that it is the *Vox Sponsae* which speaks from their lips in the Divine Office.

## Footnotes

[1] See *Ex.*, iii. 22:—"But every woman shall borrow of her neighbour, and of *her that sojourneth in her house*, vessels of silver, and vessels of gold, and raiment; and you shall put them upon your sons and upon your daughters, and you shall spoil Egypt".

[2] It is unnecessary to make any distinction between wives and concubines, because this distinction cannot in any way affect the present argument.

[3] The Hebrew text in v. 18 seems not quite clear. The interpretation we have given is supported by the Septuagint and the English Protestant version. According to the Vulgate, Caleb had but two wives, Azuba and Ephrath.

[4] Aristotle, for example, says that "twins are common in Egypt; even three or four at a birth, not rare" (*Hist. Anim.*, vii. 4). And Pliny tells us, that "for a woman to have *more than three children at a birth* is accounted a portent *except in Egypt*" (*Hist. Nat.*, vii. 4).

[5] This is the true reading according to the Hebrew, the Septuagint, and the authorized version. The Vulgate has, "Filius Phallu Eliab". A similar example however, occurs, I. Paral., ii. 8. "And the sons of Ethan, Azariah". Here the Vulgate agrees with the other versions.

[6] *An Essay on the Principle of Population*. London, 1826. Vol. i., p. 517.

[7] *Id. Ib.* "Throughout all the northern provinces the population was found to double itself in twenty-five years. The original number of persons which had settled in the four provinces of New England in 1643, was 21,200. Afterwards it was calculated that more left them than went to them. In the year 1760 they were increased to half a million. They had, therefore, all along doubled their number in twenty-five years. In New Jersey the period of doubling appeared to be twenty-two years, and in Rhode Island still less. In the back settlements, where the inhabitants applied themselves solely to agriculture, and luxury was not known, they were supposed to double their number in fifteen years". He adds in a note: "Speaking of Rhode Island, Dr. Styles says that though the period of doubling for the whole colony is twenty-five years, yet that it is different in different parts, and within land is twenty and fifteen years". p. 518.

[8] See "Tracts" of I. A. S., vol. ii, an. 1843, pag. 119.

[9] Or *Pierevill*, from the place of his birth in Suffolk.

[10] The Bull appointing him to Ossory is dated "Sexto Kalend. Octobris, 1400", and the See is described as vacant *per obitum Johannis Epi. extra curiam defuncti*.

[11] Bremond, in *Bullario Ord. Praed.* iii. 64, mentions a "*Richardus Wichelei, Winchelsey, vel Wicherlsi*", who was appointed to our see *anno circiter 1480*. The *Belgium Dominicanum* fixes the precise date of his appointment as 1479, and we see no reason for excluding him from the list of the successors of St. Canice. He must, however, have resigned the same year, though, perhaps, the title may have been continued through courtesy, even in 1481, as mentioned by De Burgo, pag. 476. Some, however, have

supposed that this bishop's see was *Ossonensis*, to which we find Dominican bishops more than once appointed in the *Bullarium* above referred to.

[12] "Vocacyon" in *Harl. Miscell.*, vi. p. 412, seqq.

[13] Mant, *Hist.*, i. 219.

[14] We learn these facts from Bale himself, in the preface to his *Centur. Script. Britt.* Also from Harris's *Ware*, pag. 416.

[15] Cox, i. 300.

[16] See Prendergast's *Cromwell's Settlement of Ireland*, pag. 156 (London, 1865).

[17] The Constitution of 1815 above mentioned.

[18] Mgr. de Ram died in Louvain on the evening of Sunday, May 14th. The funeral obsequies were celebrated on Thursday the 18th, and he was interred on Friday the 19th, at Nylen, near Lieure, where he had his country residence. On the 28th of June there was a second solemn funeral service, at which the Cardinal Archbishop of Malines presided, and the Bishop of Ghent, and the whole professorial body of the University attended. On the 7th of July the Catholic University of Ireland assisted at a solemn Requiem in the University Church, Stephen's Green, Dublin. The Archbishop of Dublin presided at the Mass, which was celebrated by the Bishop of Limerick; and a funeral discourse in honour of the deceased prelate was read by the Rector, Very Rev. Mgr. Woodlock, at a meeting of the University, on Sunday, July 9th.

Among the tokens of sympathy which it received on this sad occasion, the University of Louvain mentions the address of "condolence with her elder sister from the Catholic University of Dublin", as well as the condescension of our Holy Father, in graciously sending by telegraph his apostolic benediction to the bereaved University.

[19] Hic est titulus quo indicari solent causae seu dubia quae S. Congregationi Concilii solvenda, ab Episcopis proponuntur quando exhibent relationem status suae Dioecesis S. Sedi.

[20] Excipe festum Nativitatis diem, vel ubi privilegium concessum est, Missam iterandi, die commem. omnium defunct.

[21] Vid. append. I.

[22] Errant itaque auctores illi etiam recentiores, qui docent extra Italiam posse recipi eleemosynam pro secunda Missa, quando redditus tenues sunt qui assignantur pro implemento proprii officii; vel ex vi consuetudinis. Errant pariter cum docent extra Italiam, Parochos non teneri missas applicare pro Populo, vigentibus illis rationibus, ac cum dissimulant Const. Benedicti XIV. *Cum semper oblatas*, utpote ad Italiae Episcopos directam; non distinguentes Constitutiones quae ad aliquam determinatam provinciam ideo diriguntur, ut in ea peculiare ius statuatur; ab iis quae, quamvis ad unam provinciam oeconomice dirigantur, tamen *commune ius* declarant. Et reapse S. C. Concilii, in dirimendis dubiis, circa missam *pro Populo*, extra Italiam exortis, secundum hanc Constitutionem, constanter iudicavit: nec non S. C. de Propaganda Fide, in varias orbis partes, pro opportunitate, veluti legem servandam hanc constitutionem transmisit. Caeterum quilibet in hac repraetextus sublatus est per Constit. regnantis Pontificis quem Deus incolumem diu servet, quae incipit *Amantissimi Redemptoris*.



Aliter est iudicandum, cum agitur de locis Missionum, in quibus *paroeciae, canonice erectae non sunt*. De qua re exponemus suo loco, doctrinam a S. Congregatione de Propaganda Fide, accurate definitam.

[23] See *I. E. Record*, p. 344.

END OF VOL. I.

## Transcriber's Note:

This book was written in a period when many words had not become standardized in their spelling. Words may have multiple spelling variations or inconsistent hyphenation in the text. These have been left unchanged unless indicated below.

Footnotes were renumbered sequentially and were moved to the end of the book. Obvious printing errors, such as backwards, upside down, or partially printed letters, were corrected. Final stops missing at the end of sentences and abbreviations were added. Diacriticals omitted or reversed in French words were corrected.

Tables were reformatted to display in handheld devices.

The following spelling corrections were made:

incorporated to ...[incorporated](#) with the Hebrew...

that to ...[than](#) those of the present...

Petateuch to ...[Pentateuch](#) itself...

FROF. to ...[PROF.](#) UBAGHS...

Wultam to ...[Wultham](#), and make him successor...

Congrégation to ...[Congrégation](#) l'a apprécié...

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